POSTAL AND TELECOMMUNICATIONS (AMENDMENT) BILL, 2025

MEMORANDUM

The Bill seeks to amend the Postal and Telecommunication Act [*Chapter 12:05*]. In more detail, the individual clauses of the Bill provide as follows:

Clause 1

This clause sets out the Bill's short title and the date of commencement.

Clause 2

This clause repeals the existing definitions in the principal Act and introduces new definitions which covers a broader spectrum of issues.

Clause 3

This clause introduces a new section into the Bill, which sets out the objects of the Bill.

Clause 4

This clause amends the section on the functions of the Authority.

Clause 5

This clause sets out the composition of the board, aligning it with the principles of corporate governance, and taking into consideration constitutional provisions relating to gender balance.

Clause 6

This clause sets out the repeal of sections 7, 8, 9, 10, 11, 12, 13, 14, 15, 17, and 18 of the current Act and provides for them in the Second Schedule.

Clause 7

This clause sets out that the funds of the Authority shall consist of donations made to the Authority with the approval of the Minister.

Clause 8

This clause provides that the Minister may give policy directions that the Authority is to observe in the exercise of its functions.

Clause 9

This clause is aimed at aligning the principal Act with the principles of corporate governance in relation to the term of office of the Director-General. The clause also provides that the Director-General may delegate some of his or her functions to the staff of the Authority, and that there shall be departments or divisions which may be established by the Board from time to time.

Clause 10

This clause provides for the repeal of "Cellular telecommunication licence" and replace it with the "Telecommunications licence", which is broader.

Clause 11

This clause sets out that no service provider shall provide a service or transmit a signal by radio unless that is done in terms of a radio frequency spectrum licence issued by the Authority.

Clause 12

This clause prohibits the use of orbital resources allocated to Zimbabwe by the International Telecommunications Union, or the launch of space objects in the name of Zimbabwe, unless the person is issued with an appropriate licence by the Authority.

Clause 13

This clause sets out additional instances on when the Authority may amend a licence or any term and condition of a licence.

Clause 14

This clause sets out that the Authority shall manage the radio frequency spectrum within the range of 8.3 KHz to 3000 GHz, and any other range that the Minister may prescribe.

Clause 15

This clause provides for the insertion of new sections to the principal Act. The Authority shall develop and maintain a frequency allocation plan, which plan shall set out the apportionment of the radio frequency spectrum into frequency bands.

The Authority shall establish technical and operational standards for frequency bands for use in radiocommunication systems.

Clause 16

This clause sets out that the Authority shall have regard for international standards governing the compatibility and interoperability of telecommunication systems and secure harmonisation and standardisation of the regulation of telecommunication networks, services and associated facilities to facilitate the meeting of any obligations.

Clause 17

This clause sets out that where a telecommunication installation causes harmful radio frequency interference to other telecommunication or broadcasting services, the Authority may request the service provider to modify or suspend operation of the installation, even if the installation complies with the other requirements provided for.

Clause 18

This clause inserts a new Part in the principal Act, which sets to promote for fair competition in the market and enforce fair treatment amongst service providers. The clause sets out that players who have an economic dominance in the market over others, are to be determined as dominant licensees.

Dominant licensees shall provide access to facilities to other licensees in order to curb anti-competitive conduct.

Clause 19

This clause provides for the repeal of section 72.

Clause 20

This clause provides for the amendment of the principal Act in relation to the objects of the Universal Service Fund.

Clause 21

This clause provides that auditors shall have the same powers to audit the Fund, as those provided for when making audits to the accounts of the Authority.

Clause 22

This clause provides for additional offences and penalties that are provided for in the Bill.

Clause 23

This clause inserts two new Parts in the Act. The first Part (XIA) provides for a mechanism for dispute settlement, and the establishment of a complaint's tribunal. The clause also provides for the tenure of office for members of the tribunal.

The second Part (XIB) provides for miscellaneous provisions, such as universal obligations for licensees, the appointment of inspectors, and the interception of communications that may be used in the commission of a criminal offence.

Clause 24

This clause provides for the amendment of Part (XII) of the principal Act. The Part sets out for the general provisions as provided for in the Bill, the regulation making section by the Minister, provision for administrative fines, and proceedings that are carried out in the event that it appears to the Minister that the Authority may have failed to comply with the Act.

Clause 25

This clause provides for the repeal of Part XIII.

Clause 26

This clause provides for the First Schedule, which sets out the powers of the Authority.

Clause 27

This clause provides for the Second Schedule which sets out the provisions applicable to the board.

Clause 28

This clause sets out the Third Schedule which provides for the classification of radio stations.

Clause 29

This clause sets out the Fourth Schedule which provides for the rights, powers and duties of telecommunication licensees operating telecommunication systems.

BILL

To amend the Postal and Telecommunications Act [*Chapter 12:05*], and to provide for matters incidental to or connected with the foregoing.

ENACTED by the Parliament and the President of Zimbabwe.

1 Short title and date of commencement

(1) This Act may be cited as the Postal and Telecommunications (Amendment) Act, 2025.

(2) This Act shall come into operation on a date to be fixed by the President by statutory instrument.

2 Amendment of Section 2 of Cap. 12:05

Section 2 ("Interpretation") of the Postal and Telecommunications Act [*Chapter 12:05*], (hereinafter called "the principal Act") is repealed and the substitution of the following—

"2 Interpretation

(1) In this Act—

"agency service" means any reserved service prescribed as an agency service in terms of this Act;

"aircraft station" bears the meaning assigned to that term in the Third Schedule;

"anti-competitive conduct" means any act or omission to act which is in breach of fair competition as provided for under or in terms of this Act;

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"apparatus", in relation to telecommunications apparatus, means apparatus constructed or adapted for use in transmitting or receiving a telecommunications service;

"Authority" means the Postal and Telecommunications Regulatory Authority of Zimbabwe established in terms of section 3;

"authorised dealer" means a person authorised in terms of section 66(1)(a) to carry on the business of dealing in radio transmitting stations or radio apparatus necessary for the proper working of such stations;

"authorised repairer" means a person authorised in terms of section 66(1)(b) to carry on the business of repairing radio transmitting stations;

"Board" means the Postal and Telecommunications Regulatory Authority of Zimbabwe Board referred to in section 5;

"Broadcasting Corporation" means the Zimbabwe Broadcasting Corporation referred to in section 3 of the Zimbabwe Broadcasting Corporation Act [*Chapter 12:01*];

"broadcasting service" means a service comprising programmes for reception by members of the general public and transmitted by a broadcasting or telecommunications system;

"broadcasting station" means a radio transmitting station used for the purposes of carrying on a broadcasting service;

"cellular telecommunication system" means a radiocommunication service designed to use a limited radio frequency spectrum between cellular handsets or other terminal equipment and network transceivers for the provision of mobile, bearer and supplementary services across the cellular network, by allocating a limited number of frequencies within each of a number of defined geographical areas or cells, allowing the re-use of the same frequencies, and enabling users to maintain connections whilst moving through different geographical areas by making use of call handover between adjacent cells;

"commercial courier service" means a service for the conveyance for reward of postal articles in respect of which any undertaking is given to deliver the article to a specified destination within a specified time;

"communication" means any communication by way of a telecommunication, radiocommunication, electronic communication or postal service and "communications" shall be construed accordingly;

"community centre" means any school, railway station, police station and other location providing a service to the community;

"community service telephone", means any fixed-line, cellular or satellite telephone that is made available to the general public;

"Constitution of the Universal Postal Union" means the Constitution of the Universal Postal Union signed at Vienna on the 10th July, 1964, and the Regulations annexed thereto, or any amendment or replacement of that Constitution or regulations to which Zimbabwe is a party;

"dealer" includes—

(a) a person who carries on a trade, business or industry in which radio transmitting stations or their component parts are assembled, manufactured, imported, bought, sold, hired or exchanged or offered or exposed for sale, hire or exchange; and

(b) an auctioneer of radio transmitting stations; and

(c) the employee or agent of a person referred to in paragraph (a) or (b);

"designated licensee" means any entity designated as such by the Minister for the purposes of the provision of reserved services;

"diffusion service" means the dissemination—

(a) by means of any conducting medium of the whole or any part of writing, signs, signals, pictures, impulses or sounds broadcast by a broadcasting service; or

(b) of music, speech, pictures or other data for information, education or entertainment purposes by means of any conducting medium connected to two or more items of apparatus specifically designed for the reproduction of sound, pictures or data; or

(c) of teletext and vertical blanking intervals;

"directory information service" means a service consisting in the provision by means of a telecommunication service of directory information for the purpose of facilitating the use of a telecommunication service;

"disabled person" means a person who is substantially and permanently handicapped by any physical or mental disability;

"dominant licensee" means a licensee whom the Authority has determined to be a licensee in terms of section 71B and "dominant position" shall be construed accordingly;

"electronic mail service" means a service for the distribution of messages by electronic means;

"emergency" means any event or circumstance resulting from a major accident or natural disaster;

"emergency organisation" means, in respect of any locality, the police and any fire, ambulance or other emergency service;

"fixed date" means the date fixed in terms of section 1(2) as the date of commencement of this Act;

"fixed-line telephone service" means a telephone service transmitted by telecommunication lines;

"Fund" means the Universal Service Fund established in terms of section 73;

"generating apparatus" means any apparatus—

(a) generating or designed to generate; or

(b) liable to generate fortuitously;

Hertzian waves, which is prescribed to be generating apparatus for the purposes of this Act;

"harmful radio frequency interference" means radiation, induction, conduction or other electromagnetic effect which prevents the proper functioning of or obstructs or repeatedly interrupts—

(a) a radiocommunication service carried on in accordance with this Act or the International Telecommunication Convention; or

(b) a telephone or telegraph service carried on in terms of this Act;

"Hertzian waves" means electromagnetic waves of frequencies between 10 kilohertz and 400 gigahertz propagated in space without artificial guide;

"implementation plan" means a plan referred to in section 74;

"inspector" means a person appointed in terms of section 103(1) to be an inspector for the purposes of this Act;

"interconnection" means the physical or logical connection of two or more telecommunication networks;

"international standards" means the standards and recommendations from time to time adopted by—

(a) the International Telecommunication Union (ITU);

(b) the International Organisation for Standardisation; or

(c) the International Electrotechnical Committee;

(d) Universal Postal Union;

to which Zimbabwe subscribes by virtue of it being a party to or a member of any international treaty or organisation, as the case may be;

"International Telecommunication Constitution" means the International Telecommunication Constitution and Convention of the International Telecommunications Union signed in Geneva on the 22nd December, 1992, and the Regulations annexed thereto, or any other international telecommunication convention or agreement to which Zimbabwe may be a party and any regulations annexed thereto;

"international transit service" means a telecommunication service consisting in the conveyance of sounds, visual images or

signals which have been conveyed from, or are to be conveyed to, places outside Zimbabwe;

"internet service" means a telecommunication service consisting in the transmission by means of satellite, telecommunication lines or electricity transmission lines of sounds, visual images or signals between computer terminals located within and outside Zimbabwe;

"letter" means any form of written communication or digital communication or other document, article or object that is directed to a specific person or specific address and it is to be conveyed or transmitted through postal services and includes a packet, package or wrapper containing any such communication, document, article or object;

"licence" means any licence issued in terms of this Act;

"licensee" means a person who holds a licence in terms of this Act;

"mail" refers to any postal article that is sent through a postal service for delivery to a recipient;

"mail bag" means any secure and durable container including bag, box, basket, parcel, hamper or covering in which a postal article is conveyed or transmissible, whether it does or does not contain a postal article;

"market" means a market for any telecommunication service connected with a network, application or postal service;

"member" means a member of the Board;

"Minister" means the Minister responsible for postal and telecommunications or any other Minister to whom the President may assign the administration of this Act;

"mobile station" bears the meaning assigned to that term in the Third Schedule;

"money order" means an order for the payment of money remitted at the expense of the person making the order through and on the credit of a postal licensee;

"operate" in relation to a telecommunication system, means to install, work, maintain, develop or hire the telecommunication apparatus comprising the system concerned;

"person in charge" in relation to—

(a) a vessel, means any person, other than a pilot, having command or charge of the vessel;

(b) an aircraft, means any person in command or in charge of the aircraft;

"philatelic archival materials" bears the meaning assigned to that term by section 52;

"postage" means the duty payable for the transmission of articles by post;

"postage stamp" means any piece of paper or other substance or material whatsoever having thereon the stamp, mark or impression of any die, plate or other instrument made or used by a postal licensee for the purpose of denoting any postage;

"postal article" includes any letter, postcard, printed paper, small packet, newspaper, literature for the blind, parcel or other article whatsoever in the course of transmission by post or courier services, encompassing both physical and digital communications;

"postal licence" means a licence that authorises the licensee to operate any specified postal service;

"postal order" means a money order in a form provided by a postal licensee on which a fixed amount for remittal is denominated;

"postal service" means—

(a) a service comprising—

(i) the conveyance for reward of postal articles from one place to another, whether by land, sea or air; and

(ii) the performance of all services incidental to the receiving, collecting, sending, despatching and delivering of postal articles; and

(iii) the issuance of money orders and postal orders; or

(b) a commercial courier service;

as may be specified in the postal licence concerned and "postal" shall be construed accordingly;

"post box" means any letter box, mail box or other receptacle for the reception of postal articles for transmission by post;

"post office" includes—

(a) any house, building, room, place or structure or any vehicle used for the handling or transmission of postal articles or telegrams; and

(b) any post box;

"prescribe" means prescribe by regulations made in terms of this Act;

"private telecommunication service or system" means a telecommunication service or system which is not offered to or provided for members of the public, serving only an entity or entities in the same group of companies and is not connected to or with any telecommunication system established, maintained or worked by a telecommunication licensee;

"radio apparatus" includes any apparatus, equipment, instrument, pole, mast, standard, wire, cable, thing or means whatsoever

which is or may be used in connection with, or for the purpose of, conveying electromagnetic energy to or from a radio station;

"radio frequency spectrum" means the continuous range of electromagnetic wave frequencies up to and including the frequency of 3000 GHz;

"radio receiving station" means apparatus referred to in paragraph (b) of the definition of "radio station";

"radio station" means—

(a) apparatus, other than generating apparatus, capable of being used for the transmission or emission of writing, signs, signals, pictures, impulses and sounds of all descriptions whatsoever wholly or partly by means of Hertzian waves; or

(b) apparatus capable of being used for the reception of writing, signs, signals, pictures, impulses and sounds of all descriptions whatsoever wholly or partly by means of Hertzian waves; or

(c) apparatus referred to in paragraph (a) of this definition and apparatus referred to in paragraph (b) of this definition in combination;

"radio station licence" means a licence authorising the licensee to possess, control or work a radio station;

"radio transmitting station" means apparatus referred to in paragraph (a) of the definition of "radio station", whether in combination with apparatus referred to in paragraph (b) of that definition or otherwise;

"radiocommunication service" means a telecommunication service or system whereby writing, signs, signals, pictures, impulses and sounds of all descriptions whatsoever are transmitted, emitted or received wholly or partly by means of Hertzian waves;

"reserved service", in relation to an agency, postal or telecommunications service, means any prescribed agency, postal or telecommunications service the provision of which is reserved exclusively to any designated licensee in terms of this Act;

"satellite telephone" means a telephone service transmitted by satellite;

"sender" means the person from whom any parcel, article or telegram purports to have come, unless that person proves that he or she is not the sender thereof;

"ship station" bears the meaning assigned to that term in the Third Schedule;

"SIM" means subscriber identity module for the identification and authentication of a subscriber;

"SIM card" means an electronic communication device that enables a user to transmit and receive communications through the connectivity of such device to a telecommunications network and stores user identity, location, phone number and network authorisation date;

"State land" means land vested in the President, other than Communal Land;

"statutory body" means—

(a) any commission established by the Constitution; or

(b) any-body corporate established directly by or under an Act for special purposes specified in that Act, the membership of which consists wholly or mainly of persons appointed by the President, a Vice-President, a Minister or any statutory body or by a commission established by the Constitution;

"tariff" means a tariff of prices, rates, subscriptions or charges levied by a licensee for the provision of communication services in terms of this Act;

"telecommunication" means any communication by way of the transmission, emission or reception of signs, signals, messages, writings, images and sounds or intelligence of any nature by wire, radio, optical or other electromagnetic systems;

"telecommunication licence" means a licence authorising the licensee to provide a telecommunication service or to operate a telecommunication system, other than a private telecommunication service or system;

"telecommunication line" includes any apparatus, instrument, pole, mast, standard, wire, pipe, fibre, tunnel, pneumatic or other tube, thing or means whatever that is or may be used in connection with or for the purpose of sending, transmitting, conveying or receiving signs, signals, sounds, pictures or communications which are conveyed by means of a telecommunications system;

"telecommunication service" means any service transmitted by means of a telecommunication system;

"telecommunications system" means any system by means of which signs, signals, sounds, pictures or communications are conveyed by the agency of electricity, magnetism or electromagnetism or by any agency of a like nature, whether with or without the aid of wires, and includes telephony and telegraphy and any improvements or developments thereof;

"telegram" means any communication transmitted or intended to be transmitted by a telegraph service or delivered or intended to be delivered from any post office or telegraph office as a communication transmitted either wholly or partly by a telegraph service, and includes a communication transmitted or intended to be transmitted by means of a radiocommunication service that is reduced to writing;

"telegraph office" means any place used for the handling of telegrams;

"telegraph service" means a telecommunication service by means of which a person using the service may communicate by means of a telegram with another person;

"telephone service" means a telecommunication service by means of which a person using the service may speak or in any other way communicate to another person using the service;

"transmission" in relation to—

(a) a telegram, includes the reception as well as the sending thereof;

(b) a postal article, includes the depositing by the sender of the article in a post box;

"under-serviced area" means any area that is not, in the opinion of the Minister formed in consultation with the Authority, adequately provided with communications services;

"universal service" means the availability of accessible and affordable to every person of information and communication services, including telecommunication services determined by the Authority as being a service to be provided by a licensee to an area or sector not served or adequately served by the service;

"vessel" means and includes a ship, boat, air-cushioned vehicle or floating rig, vehicle or container which moves on water or platform used in navigation.

(2) For the purposes of this Act—

(a) a postal article shall be deemed to be in the course of transmission by post from the time of its delivery to a post office and until it is delivered to the person to whom it is addressed or returned to the sender or otherwise disposed of under this Act;

(b) the placing of an article in any post box or the delivery of an article to an employee of a postal licensee in the course of his or her duties shall be deemed to be delivery to a post office;

(c) the delivery of a postal article in terms of this Act shall be deemed to be delivery to the person to whom the postal article is addressed;

(d) in the case of a building which consists of a number of self-contained residences commonly known as flats, each such flat shall be regarded as a single building.

(3) Any reference in this Act to—

(a) the provision, reception or transmission of telecommunication services includes the provision or reception within or transmission to Zimbabwe of any such service by satellite;

(b) the operation in Zimbabwe of telecommunication systems includes the operation in Zimbabwe of telecommunication apparatus connected to telecommunication systems operated outside Zimbabwe.".

3 New section inserted in Cap. 12:05

The principal Act is amended by the insertion after section 2 of the following section—

"2A Objects of Act

The objectives of this Act are—

(a) to provide a framework for the regulation of the communications sector by an independent regulatory authority and for the provision of communications services;

(b) to promote the availability of efficient and quality communications services nationally;

(c) to promote technological innovation and the introduction and maintenance of the use of advanced facilities and services in line with international standards;

(d) to encourage private investment and the participation by citizens of Zimbabwe in the communications sector;

(e) to ensure increased accessibility of efficient and quality communications services to all regions of the country at fair and reasonable prices to consumers;

(f) to enhance regional and global co-operation and integration in communications services; and

(g) to ensure fair competition in the communications sector and to advance consumer protection from unfair business practices by communications services providers;

(h) to ensure ethical use of information communication technologies.".

4 Amendment of section 4 of Cap. 12:05

Section 4 ("Functions and powers of Authority") of the principal Act is amended by repeal of subsection (1) and substitution of the following—

"(1) Subject to this Act, the functions of the Authority shall be—

(a) to regulate the provision and access to communication services of a standard sufficient to meet national and international needs of Zimbabwe;

(b) to promote the development of communication systems and services in accordance with public demand and practicable recognised international standards;

(c) to recommend to the Minister the categories and content of any licence as may be necessary from time to time and to exercise licensing and regulatory functions in respect of communication systems and services;

(d) to exercise licensing and regulatory functions in respect of the allocation and use of satellite orbits and the radio frequency spectrum in Zimbabwe for all purposes, including the establishment of standards and codes relating to any matter in connection therewith;

(e) to promote the interests of consumers in respect of quality, variety and secure use of communication services provided and communication equipment supplied;

(f) to maintain and promote effective competition between persons engaged in the provision of communication services and any activities connected therewith;

(g) to promote and ensure the expansion of communication services and secure the availability throughout Zimbabwe of a wide range of communication services which are of a high quality;

(h) to promote research and development in the communications sector;

(i) administer the numbering and naming resources taking into account international standards, processes and procedure for the management of such resources;

(j) to represent Zimbabwe internationally in matters relating to communication services;

(k) advise the Minister on all matters relating to communication systems and services;

(l) to administer the Universal Service Fund; and

(m) any other function as may be assigned by any other law.".

5 Amendment of section 6 of Cap. 12:05

Section 6 ("Constitution of Board") of the principal Act is repealed and the substitution of the following—

"6 Composition of Board

(1) Subject to this section, the Board shall consist of not fewer than nine and not more than eleven members appointed by the Minister after consultation with the President.

(2) In appointing the members of the Board, the Minister shall ensure that members have a diversity of skills, experience or qualifications in—

(a) engineering;

(b) postal services;

(c) law;

(d) accountancy or finance;

(e) economics;

(f) human resources and administration.

(3) At least half of the members of the Board shall be women.

(4) The Minister shall designate one of the members as chairperson of the Board and another member as vice-chairperson of the Board:

Provided that they shall be of the opposite sex.

(5) A member shall hold office for a period not exceeding four years and shall be eligible for re-appointment for a further one such term of office.

(6) Subject to this section, the Second Schedule shall apply to the provisions applicable to the Board.".

6 Repeal of sections 7, 8, 9, 10, 11, 12, 13, 14, 15, 17, 18 of Cap. 12:05

Sections 7, 8, 9, 10, 11, 12, 13, 14, 15, 17, and 18 of the principal Act are repealed.

7 Amendment of section 19 of Cap. 12:05

Section 19 ("Funds of Authority") is amended by the insertion of paragraph (d)—

"(d) funds donated to the Authority with the approval of the Minister.".

8 Amendment of section 25 of Cap. 12:05

Section 25 ("Minister may give policy directions") (1) of the principal Act is repealed and the substitution of the following—

"(1) The Minister may give the Authority such general directions relating to the policy the Authority is to observe in the exercise of its functions as the Minister considers to be necessary in the national interest, which policy directions shall—

(a) not be inconsistent with any provision of this Act; and

(b) be issued in good faith, apply prospectively and not retrospectively, and be of general applicability; in particular the policy directions—

(i) must not be issued in relation to any particular application or dispute pending before the Authority and must not apply so as to influence or direct the Authority on the outcome of any particular application, dispute or other matter that is being considered by the Authority immediately before the directions are issued, or

(ii) must not prejudice the application of the rules of natural justice by the Authority in the exercise of its quasi-judicial functions;

(c) clearly delimit the scope of their application and must otherwise not be vague or ambiguous in their terms; and

(d) clearly express the national interest at stake;

(e) be clear (whether expressly or by necessary implication) that they apply or are in force for a fixed or indefinite period, or that they expire on the happening of any event.".

9 Amendment of section 29 of Cap. 12:05

Section 29 ("Director-General and other employees of Authority") of the principal Act is amended by the insertion of subsections after subsection (8) as follows—

"(9) The Director-General shall—

(a) be appointed for a term not exceeding five years, which term may be renewed for only one further such term; or

(b) not be eligible for appointment if he or she has already served as the Director-General of the Authority for one or more periods, whether consecutive or not, amounting in the aggregate to ten years.

(10) The Director-General may delegate to any appropriate employee of the Authority any functions which by this Act or any Act referred to in section 4(2) is conferred or imposed upon him or her, other than the power to delegate.

(11) The Authority shall have such departments or divisions as the Board may establish from time to time.".

10 Amendment of sections 31 and 32 of Cap. 12:05

Sections 31 ("Cellular telecommunication licence") and 32 ("Postal licence") of the principal Act are repealed and the substitution of the following–

"31 Postal licences

(1) Subject to this section, no person shall operate a postal service except in accordance with an appropriate licence issued by the Authority in terms of this Act.

(2) The Minister shall, after consultation with the Authority, make regulations prescribing the classes or types of postal licences and the terms and conditions subject to which any of the licences shall be issued by the Authority for the purposes of this Act.

(3) It shall be a condition of every licence for postal services that the licensee shall comply with the standards of the Universal Postal Union as may be appropriate.

(4) Any person who contravenes subsection (1) shall be guilty of an offence and liable to a fine not exceeding level 14 or to imprisonment for a period not exceeding five years or to both such fine and such imprisonment.

(5) In addition to any punishment it may impose under subsection (4) and without derogation from its powers under any enactment, a court convicting a person of contravening subsection (1) shall declare forfeited to the State and shall be auctioned or disposed of any equipment or apparatus used for the purpose of or in connection with the offence in the manner prescribed:

Provided that the court shall not make such a declaration if the convicted person satisfies the court that, for reasons which it shall record, there are special reasons in the particular case why the equipment or apparatus concerned should not be forfeited.

32 Telecommunications licences

(1) Subject to this section, no person shall provide any telecommunication service or operate a telecommunication network or system or provide any telecommunications application services or other related application services except in accordance with an appropriate telecommunication licence.

(2) The Minister shall make regulations prescribing—

(a) the classes or types of telecommunication licences, the geographic and population-related coverage for any such licences and such other terms and conditions subject to which any of the licences shall be issued by the Authority for the purposes of this Act; and

(b) abolishing any class or type of licence subject to such period of notice as may be prescribed.

(3) In pursuance of rights conferred and to the extent authorised by or under—

(a) the Electricity Act [*Chapter 13:19*], the Zimbabwe Electricity Supply Authority; and

(b) the Railways Act [*Chapter 13:09*], the National Railways of Zimbabwe;

shall, subject to subsection (4), be authorised to operate telecommunication services or systems for the purpose of providing private telecommunication services or systems.

(4) The Authority shall, without delay, cause appropriate telecommunication licences to be issued to the statutory bodies referred to in subsection (3), and those licences may be renewed or amended, but not, except with the consent of the Minister, suspended or cancelled, in all respects as if they had been issued in terms of this Part.

(5) Any person who contravenes subsection (1) shall be guilty of an offence and liable to a fine not exceeding level 14 or to imprisonment for a period not exceeding ten years or to both such fine and such imprisonment.

(6) In addition to any punishment it may impose under subsection (4) and without derogation from its powers under any enactment, a court convicting a person of contravening subsection (1) shall declare forfeited to the State and shall be auctioned or disposed of any equipment or apparatus used for the purpose of or in connection with the offence in the manner prescribed:

Provided that the court shall not make such a declaration if the convicted person satisfies the court that, for reasons which it shall record, there are special reasons in the particular case why the equipment or apparatus concerned should not be forfeited.".

11 New section inserted in Cap. 12:05

The principal Act is amended by the insertion after section 33 of the following section—

"33A Radio frequency spectrum licence

(1) Subject to this Act, no person shall use any radio frequency spectrum to provide a service or transmit any signal by radio or use any radio apparatus to receive any signal by radio except in accordance with a radio frequency spectrum licence issued by the Authority which shall have the exclusive authority to control and manage the use of the radio frequency spectrum.

(2) The Minister may, after consultation with the Authority, make regulations prescribing the classes or types of radio frequency spectrum licence and the terms and conditions subject to which any of the licences shall be issued.

(3) Notwithstanding that a person is the holder of any other licence issued in terms of this Act, such person shall be required to apply for a radio spectrum frequency licence if the provision of such other service requires the use of radio frequency spectrum.

(4) Any person who contravenes subsection (1) shall be guilty of an offence and liable to a fine not exceeding level 14 or to imprisonment for a period not exceeding ten years or to both such fine and such imprisonment.

(5) Any person who contravenes subsection (3) shall be liable to an administrative charge as provided in section 95.

(6) In addition to any punishment it may impose under subsection (4) and without derogation from its powers under any enactment, a court convicting a person of contravening subsection (1) shall declare forfeited to the State and shall be auctioned or disposed of any equipment or apparatus used for the purpose of or in connection with the offence in the manner prescribed:

Provided that the court shall not make such a declaration if the convicted person satisfies the court that, for reasons which it shall record, there are special reasons in the particular case why the equipment or apparatus concerned should not be forfeited.".

12 Amendment of section 34 of Cap. 12:05

Section 34 ("Telecommunication licence") of the principal Act is repealed and the substitution of the following—

"34 Orbital resource licence

(1) Subject to this section, no person shall utilise the orbital resources allocated to Zimbabwe by the International Telecommunications Union or launch a space object in the name of Zimbabwe except in accordance with an appropriate licence issued by the Authority in terms of this Act.

(2) The Minister may, after consultation with the Authority, make regulations prescribing the classes or types of licences for access and use of orbital resources including the terms and conditions subject to which any of the licences shall be issued by the Authority for the purposes of this Act.

(3) Any person who contravenes subsection (1) shall be guilty of an offence and liable to a level fourteen fine or to imprisonment for a period not exceeding 14 years or to both such fine and such imprisonment.".

13 Amendment of section 42 of Cap. 12:05

Section 42 ("Amendment of licence") (1) of the principal Act is amended by the insertion of the following paragraphs—

"(e) by operation of law; or

(f) to implement changes in the national radio frequency spectrum plan or for the orderly management of the frequency spectrum.".

14 Amendment of section 47 of Cap. 12:05

Section 47 ("Frequency bids") of the principal Act is repealed and the substitution of the following—

"47 Management of radio frequency spectrum

(1) The Authority shall manage the radio frequency spectrum within the range 8.3 KHz to 3000GHz or any other range as may be prescribed.

(2) The Authority shall manage geostationary satellite orbital slots allocated to Zimbabwe.

(3) In the discharge of its functions in terms of this section, the Authority shall—

(a) take all steps necessary to ascertain the demand for, the effects of and the likely future developments in, the use of the electromagnetic spectrum for wireless services and applications and any other related matters which the Authority may consider relevant;

(b) take into account the International Radio Regulations and any other relevant international and regional instruments to which Zimbabwe is a party;

(c) ensure the efficient utilisation of the radio frequency spectrum, taking into account the need for regional and global harmonisation;

(d) pay due regard to the radio frequency spectrum currently assigned to the Government, civil aviation, aeronautical services, scientific research and other planned uses;

(e) ensure flexibility to enable the swift and efficient introduction of new technologies;

(f) create opportunities for the introduction of the widest range of services and the maximum number of users possible;

(g) eliminate harmful interference to licensed systems, including interferences from across Zimbabwe's borders;

(h) ensure the equitable distribution of radio frequency spectrum among different services.".

15 New sections inserted in Cap. 12:05

The principal Act is amended by the insertion after section 47 of the following sections—

"47A National frequency allocation plan

(1) The Authority shall develop and maintain a frequency allocation plan to be known as the Zimbabwe National Frequency Allocation Plan.

(2) The plan shall set out the apportionment of the radio frequency spectrum into frequency bands which are allocated to a limited number of radio services designated for use for specified applications.

(3) The plan shall be reviewed and amended at any time to update it as necessary in line with prevailing trends but, in any case and as necessary, within twelve months of the holding of every World Radio Communications Conference.

(4) Before the development or amendment of the plan, the Authority shall give notice in the *Gazette* of its intention to develop or amend the plan, and invite any interested persons to submit written representations to the Authority within such period, being not less than thirty days from the date of publication of the notice, as may be specified in the notice.

(5) Within a further period of thirty days following the expiry of the period referred to in subsection (4), the Authority shall recommend a plan to the Minister who shall be informed of the representations received in terms of that subsection.

(6) The Minister shall, within thirty days of receipt of the recommended plan, either approve the plan and notify the Authority in writing accordingly or direct the Authority to carry out further consultations in which event the Authority shall proceed in terms of subsections (4) and (5).

(7) In developing or amending the plan, the Authority shall take into account the impact of any changes to existing users.

(8) Upon approval of the plan, the Authority shall cause the Plan to be published in the *Gazette* and shall keep the plan posted on the website of the Authority.

(9) The plan and all the representations and documents received under subsection (4) shall be—

(a) kept at the offices of the Authority; and

(b) open to the public for inspection during business hours subject to payment of a fee as may be prescribed.

47B Development of radiocommunication standards

(1) The Authority with the approval of the Minister, shall establish technical and operational standards for all frequency bands designated for use in radiocommunication systems for the purpose of—

(a) ensuring the efficient use of the radio frequency spectrum;

(b) the protection of the integrity radiocommunication systems or networks;

(c) ensuring regional and international harmonisation, conformity and interoperability of the radiocommunication systems;

(d) aligning with the relevant ITU Standards and guidelines; and

(e) promoting flexibility, certainty and innovation.

(2) The Minister shall through a statutory instrument publish the technical and operational standards in the *Gazette*.

47C Frequency assignments

Subject to this section, the assignment of any frequencies to any stations or classes of stations between 8.3 kHz and 3000 GHz for radiocommunication or for any other purpose, including the transfer of energy by radio, shall be made in accordance with the Zimbabwe Frequency Allocation Plan:

Provided that in the case of an emergency and for research and experimental purposes the Authority may authorise any person to use spectrum on the same frequency allocated to another service.".

16 Amendment of sections 62 & 63 of Cap. 12:05

Sections 62 ("Approval of telecommunication apparatus") and 63 ("Special provisions relating to telecommunication licensee operating telecommunication systems") of the principal Act are amended—

(a) by the repeal of section 62(6) and the substitution of the following—

"(6) In establishing any standard for the purposes of this section, the Authority shall at all times have regard to international standards governing the compatibility and interoperability of telecommunication systems and secure harmonisation and standardisation of the regulation of telecommunication networks, services and associated facilities to facilitate the meeting of any obligations imposed by the Authority on any licensee relating to network access, service interoperability and interconnection, whether or not a licensee is a dominant licensee.";

(b) in section 63 by the deletion of the words "Third Schedule" and the substitution of "Fourth Schedule", whenever they appear in the section.

17 New section inserted in Cap. 12:05

The principal Act is amended by the insertion after section 68 of the following section—

"68A Radio frequency interference

(1) Where a telecommunication installation causes harmful radio frequency interference to other telecommunication or broadcasting services, the Authority may require the licensee to modify it at its own expense or to suspend operation of the installation notwithstanding that the installation otherwise complies with other requirements in terms of this Act.

(2) Where telecommunication installations disrupt or are likely to disrupt the use of any radio frequency spectrum that require more protection, the Authority may restrict or forbid the setting up of the installation notwithstanding that the installations otherwise comply with other requirements in terms of this Act.

(3) The Minister may prescribe the conditions under which the police may in the interest of public safety or public security install or operate a telecommunication installation which causes interference.

(4) The Authority shall have access to all telecommunication installations in order to determine the source of any interference to telecommunication or broadcasting services.".

18 New Part inserted in Cap. 12:05

The principal Act is amended by the insertion of a new Part after Part IX as follows—

"PART IXA

ECONOMIC REGULATION

71A Fair competition and prohibition of anti-competitive conduct

(1) A licensee shall not engage in any conduct in connection with the provision of services where the conduct concerned has or is intended or is likely to result in unfairly preventing, restricting, reducing or distorting competition in the market.

(2) The Authority shall ensure that there is fair competition in the market and shall promote, develop and enforce fair competition and fair treatment among licensees in order to prevent anti-competitive conduct in the sector.

(3) Notwithstanding subsections (1) and (2), the Authority may, if it is satisfied that it is in the national interest to do so, authorise any specific anti-competitive conduct by a licensee for a specified period and for that purpose, the Authority shall—

(a) require from the licensee such undertakings in respect of the authorised conduct as it may specify; and

(b) maintain a register of such authorisations.

71B Determination of dominant licensee

(1) Where a licensee individually or jointly with others has economic dominance in the market or a segment thereof affording such licensee the power to an appreciable extent, to act independently of competitors, customers and consumers, the Authority shall determine that the licensee is a dominant licensee for the purposes of this Act.

(2) Before making a determination in terms of this section, the Authority shall, in the form prescribed, notify the licensee of the proposal to make the determination and the notice must—

(a) state that the Authority is proposing to make a determination of dominant licensee and the market segment for which the determination is proposed;

(b) set out the effect of the proposal;

(c) give reasons for the proposal; and

(d) specify the period within which representations may be made to the Authority about the proposal.

(3) In making a determination of dominant licensee in terms of subsection (1), the Authority shall take into account—

(a) the licensee's share of the market;

(b) the level of control over the market infrastructure;

(c) the availability to the licensee of capital, technological or other resources and the technological advancement of the licensee;

(d) the extent of the licensee's power in the supply of any service in the market or any segment of the market;

(e) the ability of the licensee to materially restrict competition for a significant period of time; and

(f) the power of the licensee to manipulate prices the effect of which is to unfairly exclude or materially restrict competition for a significant period of time.

(3) The Authority shall make a determination of dominant licensee, maintain, review or rescind a determination, taking into account prevailing conditions with regard to markets, following market analyses designed for that purpose and conducted at such intervals as the Authority may consider appropriate.

(4) A licensee may call upon the Authority to conduct a market analysis on presenting to the Authority sufficient information which satisfies the Authority that there is *prima facie* evidence that a new determination is necessary.

(5) The Minister, in consultation with the Authority, may by regulations prescribe the form and content of market analyses by which market dominance shall be determined.

71C Granting of access by dominant licensees

(1) A dominant licensee shall provide access to other licensees' facilities and services including access in the form of—

(a) fully unbundled access to the local loop;

(b) interconnection, in respect of which section 71E shall *mutatis mutandis* apply;

(c) leased lines;

(d) access to cable ducts, provided these have sufficient capacity.

(2) A dominant licensee shall publish the conditions and prices for access to any of these services.

(3) If, within such time as may be prescribed following a request for access, the parties do not agree on the conditions for access, the Authority shall, at the request of one party, determine such conditions having regard to the need to promote effective competition and the effects of its decision on competing parties.

(4) In determining what conditions to set in any case, the Authority—

(a) shall take into account, in particular, the following factors—

(i) the technical and economic viability, having regard to the state of market development, of installing and using facilities that would make the proposed network access unnecessary;

(ii) the feasibility of the provision of the proposed network access;

(iii) the investment made by the person initially providing or making available the network or other facility in respect of which access is proposed;

(iv) the need to secure effective competition in the long term;

(v) any rights to intellectual property that are relevant to the proposal;

(vi) the desirability of securing the availability of postal and telecommunication services throughout the country; and

(vii) the guidelines referred to in section 71E;

(b) may include conditions—

(i) for securing fairness and reasonableness in the way in which requests for network access are made and responded to;

(ii) for securing compliance with the obligations contained in the conditions within the periods and at the times required by or under the conditions;

(iii) requiring the dominant licensee not to discriminate unduly against any persons in relation to matters connected with network access or with the availability of the associated facilities;

(iv) for the purpose of securing transparency, requiring the dominant licensee to publish, in such manner as may be prescribed, all such information as they may be prescribed, including the terms and conditions on which it is willing to enter into an access contract.

(5) The conditions authorised in terms of this section may also include conditions requiring the dominant licensee to maintain a separation for accounting purposes between different matters relating to network access or the availability of associated facilities, in such manner as may be prescribed, including the accounting methods to be used in maintaining the separation.

(6) Subject to section 75, conditions in terms of this section may include the imposition on the dominant licensee of such price controls as the Authority may direct in relation to matters connected with the provision of network access or the availability of associated facilities, including—

(a) rules in relation to the recovery of costs;

(b) rules on the use of cost accounting systems for those purposes; and

(c) obligations to adjust prices in accordance with such directions as the Authority may consider appropriate;

and the Authority shall obtain from the dominant licensee a description, to be made available to the public, of the cost accounting system used for the purposes of this section, covering the main categories under which costs are brought into account and the rules applied with respect to the allocation of costs under the cost accounting system.

(7) The decision of the Authority shall be made within such time as may be prescribed.

(8) A dominant licensee whose services are bundled must also offer the services included in the bundle individually unless the services can only be offered as a bundle for technical, economic, quality and security reasons.

71D Conditions for network access pricing, etc.

(1) The Authority shall not act in terms of section 71C(6), unless it appears—

(a) from the market analysis carried out for the purpose of setting that condition that there is a risk of adverse effects arising from price distortion; and

(b) that the setting of the condition is appropriate for the purposes of—

(i) promoting efficiency;

(ii) promoting sustainable competition; and

(iii) conferring the greatest possible benefits on the end-users;

and in the national interest.

(2) When acting in terms of section of 71C(6), the Authority must take account of the extent of the investment by the dominant licensee in the matters to which the condition relates.

(3) For the purposes of this section, adverse effects arising from price distortion might occur if the dominant licensee imposes a price squeeze which have adverse consequences for end-users.

(4) In considering the matters mentioned in subsection (1)(b), the Authority may—

(a) have regard to the prices at which services are available in comparable competitive markets;

(b) determine what it considers to represent efficiency by using such cost modelling methods as it deems fit.

71E Interconnection between telecommunication systems

(1) Subject to this section, if a telecommunication licensee is requested to do so by another such licensee, the requested licensee shall connect the requesting licensee's telecommunication system to the requested licensee's telecommunication system in accordance with the terms and conditions of an agreement concluded between the licensees in terms of this section.

(2) An agreement for the interconnection of telecommunication systems in terms of subsection (1) shall—

(a) subject to subsection (5), be concluded within the period specified by the Authority or within such longer period as the Authority may permit; and

(b) be consistent with guidelines published in terms of subsection (3); and

(c) be subject to approval by the Authority.

(3) The Authority shall prescribe guidelines as to the form and content of agreements for the interconnection of telecommunication systems, and such guidelines may make provision for—

(a) the period within which the interconnection shall be completed; and

(b) the quality or standards of service to be provided by the interconnected systems; and

(c) the fees and charges payable for the interconnection; and

(d) any other matter which, in the Authority's opinion, will facilitate the interconnection.

(4) Before concluding an agreement for the interconnection of telecommunication systems in terms of subsection (1), the parties shall lodge their proposed agreement with the Authority for its approval, which approval shall be given if the Authority is satisfied that the agreement is consistent with the prescribed guidelines.

(5) If the Authority refuses to approve an agreement in terms of subsection (4), it shall notify the parties in writing of the reasons for its refusal and shall require the parties to re-negotiate the proposed agreement, within such period as the Authority may specify, to render it consistent with the prescribed guidelines.

(6) If, after a request for the interconnection of telecommunication systems has been made in terms of subsection (1)—

(a) the licensee to whom the request was made refuses to accede to the request; or

(b) the licensees concerned are unable, within the period referred to in subsection (2)(a), to agree on the terms and conditions of an agreement for the interconnection of their telecommunication systems;

the matter shall be referred to the Authority for its decision.

(7) Where a matter has been referred to the Authority in terms of subsection (6), the Authority shall conduct such investigation into the matter as it considers necessary and, after affording the parties an adequate opportunity to make representations, shall—

(a) where the matter concerns a refusal by a licensee to accede to a request for interconnection in terms of subsection (1)—

(i) direct the licensee concerned to accede to the request, subject to such terms, conditions or modifications as the Authority may specify, if the Authority is satisfied that the interconnection is technically feasible and will promote increased public use of telecommunication services or more efficient use of telecommunication services; or

(ii) permit the licensee concerned to reject the request, if the Authority is not satisfied as provided in subparagraph (i); or

(b) where the matter concerns the terms and conditions of an agreement for the interconnection of telecommunication systems—

(i) suggest terms and conditions which the parties should or might incorporate in the agreement to resolve their dispute and direct them to resume negotiations towards reaching an agreement within such reasonable time as the Authority shall specify; and

(ii) if the parties fail to reach agreement within the period specified in terms of subparagraph (i), make a decision as to what the disputed terms and conditions should be, and those terms and conditions shall bind the parties and shall be included in an agreement:

Provided that any such terms and conditions shall be consistent with the prescribed guidelines.

(8) A party to any interconnection agreement shall not, notwithstanding anything to the contrary contained in the agreement, disconnect or discontinue interconnection to an interconnecting party without prior written approval of the Authority on written application therefor.

(9) Any expired interconnection agreement shall remain in force until completion of any negotiations for a successor interconnection agreement but in any event, for a period not exceeding three months following the date of expiry of the agreement.

(10) Contravention of subsections (8) and (9) shall constitute a ground for suspension or cancellation of a licence in terms of section 43.

71F Anti-competitive conduct

(1) The Authority may, at its own instance or upon a complaint being made to it, investigate any licensee who it has reason to believe or is alleged to have committed or is engaged in any conduct which is anti-competitive by reason of such conduct being in breach of fair competition.

(2) Anti-competitive conduct in contravention of subsection (1) shall include—

(a) any abuse by any licensee, either independently or with others, of a dominant position which unfairly excludes or limits competition between such licensee and any other party;

(b) entering into any agreement or engaging in any practice with any other party which unfairly prevents, restricts or distorts competition or which—

(i) directly or indirectly fixes prices or any other trading conditions;

(ii) limits or controls markets, technical development or investment;

(iii) applies dissimilar conditions to equivalent transactions with other trading parties thereby placing them at a competitive disadvantage;

(iv) makes the conclusion of contracts subject to acceptance by the other parties of supplementary obligations which,

by their nature or according to commercial usage, have no connection with the subject of such contract;

(c) the causing of anti-competitive changes in the market structure and in particular, anti-competitive mergers or acquisitions in the sector; and

(d) any other conduct which may be prescribed as anti-competitive conduct for the purposes of this Act.

(2) In investigating any anti-competitive conduct, the Authority shall give written notice to the licensee concerned—

(a) stating that the Authority is investigating alleged anti-competitive conduct and the basis of the allegation; and

(b) requesting such information as it may consider necessary from the licensee in order to complete the investigations; and

(c) where appropriate, the steps to be taken in order to remedy the breach.

(3) The licensee concerned shall, within thirty days from the date of receipt of the notice, give to the Authority all information required under the notice and may make any written representations in response to the notice.

(4) Any person affected by the anti-competitive conduct may also make representations to the Authority in relation thereto.

(5) The Authority shall, after considering any representations of the licensee or any other person, fix a date on which a hearing shall be held before making a decision on the matter.

(6) The decision of the Authority shall be communicated to the interested parties and published in the *Gazette* within sixty days of a complaint being lodged with the Authority or, in the case of an investigation at the instance of the Authority, within sixty days of the service of the notice referred to in subsection (3) and if the Authority finds that a licensee is or has been engaged in anti-competitive conduct, it—

(a) shall order the licensee to stop conduct forthwith; and

(b) may require the licensee to pay such fine as may be prescribed, not exceeding the equivalent of ten *per centum* of the annual turnover of the licensee for each financial year that the breach lasted up to a maximum of three years; and

(c) shall declare any anti-competitive agreement or contract null and void.

(7) Any person aggrieved by the decision of the Authority under this section may appeal against such decision to the High Court.

(8) This section shall not in any way limit or affect the obligations of a licensee under any licence held by the licensee.

(9) Nothing contained in this Act shall be construed in any way as limiting the obligations of any person under the law governing competition

in Zimbabwe if the conduct complained of under this Act constitutes an offence under any such law or from being liable under such law to a penalty higher than that provided for under this Act.

71G Competition regulation

(1) The Minister may, in consultation with the Authority, make such regulations as are necessary governing competition in the communication sector.

(2) Regulations referred to in subsection (1) may provide for—

(a) access, including rules on interconnection to each other's network;

(b) the procedure for investigating and dealing with anti-competitive conduct;

(c) access to, or provision of, any information for purposes of any investigation;

(e) the determination of any remedy for anti-competitive conduct;

(f) the definition of market segments;

(g) market segments in respect of which limited competition may be allowed;

(h) the regulation of any agreements between licensees and any foreign network facilities or service providers to the extent necessary to prevent or mitigate any conduct by such foreign providers that is anti-competitive under this Act.

(3) A dominant licensee shall file tariffs, terms and conditions of interconnection with the Authority.

71H Representations by consumers

(1) The Authority may from time to time, by notice in the *Gazette*, Authority's website or in newspapers widely circulating in any area in Zimbabwe, call upon members of the public to make any representations with regard to—

(a) the manner in which communications services are provided;

(b) the manner in which associated facilities are made available;

(c) their experiences with regard to the manner in which communication services and associated facilities are provided or made available;

(d) the supply of apparatus designed or adapted for use in connection with any such services or facilities;

(e) the supply of directories capable of being used in connection with the use of communications services;

(f) the financial and other terms on which such services or facilities are provided or made available, or on which such apparatus or directories are supplied;

(g) the standards of service and the quality and safety of services, facilities, apparatus and directories;

(h) the handling of complaints made by persons who are consumers in the markets for such services, facilities, apparatus or directories to the persons who provide the services or make the facilities available, or who are suppliers of the apparatus or directories;

(i) the resolution of disputes between consumers and the persons who provide or make such services or facilities available, or who are suppliers of any apparatus or directories;

(j) the provision of remedies and redress in respect of matters that form the subject-matter of such complaints or disputes;

(k) the information about service standards and the rights of consumers that is made available by persons who provide or make available such services or facilities, or who are suppliers of such apparatus or directories;

(l) any other matter appearing to the Authority to be necessary for securing effective protection for consumers in the markets for any such services, facilities, apparatus or directories.

(2) Those services and facilities include—

(a) electronic communication services and associated facilities;

(b) a service consisting in the supply of information for use in responding to directory enquiries; and

(c) every service or facility not falling within any of the preceding paragraphs which is provided or made available to members of the public—

(i) by means of a communication network; and

(ii) in pursuance of agreements entered into between the person by whom the service or facility is provided or made available and any members of the public.

(3) If it considers it necessary to do so, the Authority shall give advice with respect to any matters raised by members of the public and may carry out research into any such matters as appear necessary to the carrying out of its functions in terms of this Act.

(4) The Authority may publish in the *Gazette* and in such newspapers as the Authority thinks appropriate circulating in any area in Zimbabwe, such information as it thinks fit about any advice given and the reasons therefor and the results of any research carried out by it with appropriate regard for the need to preserve commercial confidentiality as may be necessary.

(5) The Authority must prepare an annual report on the carrying out of its functions in terms of this section which must be published as soon as practicable after its preparation is complete in such form and manner as it considers appropriate.

(6) The Authority may issue guidelines for the purposes of implementing this section.

71I Approval of tariffs

(1) At the time of applying for a new or renewal of a licence, a licensee shall submit in writing the proposed tariff to the Authority for approval.

(2) If a licensee proposes to amend or replace the tariff that was approved at the time when the licence was issued or renewed, the licensee shall give notice to the Authority within such period and in such form and manner as the Authority may require or as may be prescribed.

(3) The Authority shall, within fourteen days of the receipt of the proposal, respond in writing confirming whether or not a proposal submitted in terms of subsection (2) is approved, and where the Authority has not so responded within such period, the proposal shall be deemed to have been approved by the Authority.

(4) In considering any proposal submitted to it in terms of subsection (1) or (2), the Authority shall be guided by considerations of fair competition and the need to protect consumers but shall not unreasonably refuse to approve any such proposal.

(5) No amended or substituted tariff shall come into operation unless it is published in the *Gazette* and in newspapers circulating throughout the country at least seven days before implementation.

(6) A licensee to whom this section applies shall publish the tariff by—

(a) making it available for inspection at the licensees' principal places of business during normal business hours; and

(b) promptly sending the relevant parts of the tariff at the request of any consumer of the services concerned.

(7) Tariffs may not exceed such maximum as may be set from time to time by the Authority based on cost models as may be prescribed.".

19 Repeal of section 72 of Cap. 12:05

Section 72 ("Interpretation in Part X") of the principal Act is repealed.

20 Amendment of section 74 of Cap. 12:05

Section 74 ("Objects of Fund") of the Principal Act is amended by the repeal of Section 74 and the substitution of the following—

"74 Objects of Fund

The objects of the Fund shall be—

(a) the standardisation of communication services and the maintenance of high standards of quality in the provision of such services; and

(b) to make grants to local authorities or their appointed agents for the purpose of assisting needy persons to obtain access to communication services; and

(c) to finance or assist in financing the extension of communication services to under-serviced areas and community centres within or outside such areas; and

(d) to assist in the training of persons in the provision of communication services; and

(e) to promote or contribute towards research and development in the field of communication services; and

(f) to promote and contribute towards the expenses of the adaptation or facilitation of the use of communication services for the benefit of persons with disabilities, including the provision without charge of directory information services appropriate to meet the needs of such persons; and

(g) to encourage and facilitate, for the benefit of Zimbabwe, the transfer of communication technology from foreign providers of such technology;

(h) to support the development, deployment, and enhancement of ICT equipment, infrastructure and services in unreserved and unserved areas, with the aim of facilitating access to affordable, reliable, and secure digital services;

(i) to support and facilitate the provision of ICT disaster management and emergency services, including restoration of infrastructure and equipment destroyed by natural disasters;

(j) to support the Ministry with ten *per centum* of the fund and channel it towards government infrastructure and policy initiatives;

in accordance with an annual implementation plan prepared by the Authority.".

21 Amendment of section 79 of Cap. 12:05

Section 79 ("Accounts and Audit of Fund") of the principal Act is Amended by the insertion of subsection (3)—

"(3) Sections 23 and 24 shall *mutatis mutandis* apply with respect to the audit of the Fund.".

22 New sections inserted in Cap. 12:05

The principal Act is amended by the insertion after section 93 of the following sections—

"93A Fraudulent use of communication services

(1) Any person who—

(a) dishonestly obtains any electronic communication services or systems, with intent to avoid payment of a charge applicable for the provision of the service or to defraud a licensed operator; or

(b) has in his or her possession or under his or her control or supplies or offers to supply anything that may be used for or in connection with dishonestly obtaining any telecommunication services or systems; or

(c) allows a device or gadget to be dishonestly used to obtain any telecommunication services or systems or for a purpose connected with the dishonest obtaining of any such a service;

shall be guilty of an offence and liable to a fine not exceeding level fourteen or to imprisonment for a period not exceeding five years or to both such fine and such imprisonment.

(2) For the purposes of this section, in the case of a thing used for recording data, the use of that thing includes the use of data recorded by it.

93B General offences and penalties

(1) Any person who obstructs the Authority or its representative in enforcing any provisions of this Act shall be guilty of an offence and liable to a fine not exceeding level fourteen or to imprisonment for a period not exceeding five years or to both such fine and such imprisonment.

(2) Any person who contravenes any other provision of this Act, or any order, direction, instruction or notice with which it is his or her duty to comply shall be guilty of an offence and, if no other penalty is provided therefor, shall be liable to a fine not exceeding level 7 or to imprisonment for a period not exceeding two years or to both such fine and such imprisonment.

(3) Any order, direction, instruction or notice made in terms of this Act may specify a penalty for each day that the licensee subjected to the order direction, instruction or notice is in default of compliance, not exceeding the period and amount prescribed.

93C Recovery of fees and contributions

(1) Upon the conviction of a person for an offence in terms of sections 31, 32, 33, 33A, or 34, the court convicting the accused may, on the application of the prosecutor and in addition to any penalty which it may impose, give summary judgment in favour of the Authority for the amount of the appropriate licence fee.

(2) A judgment given by a court in terms of subsection (1) shall have the same force and effect and may be executed in the same manner as if the judgment had been given in a civil action instituted in the court.

(3) The Authority may, by action in a competent court, recover the amount of a licence fee or contribution payable in terms of this Act.

23 New Parts inserted in Cap. 12:05

The principal Act is amended by the insertion of a new Parts after Part XI as follows—

"PART XIA

SETTLEMENT OF DISPUTES AND APPEALS

93D Settlement of disputes

(1) Where any dispute arises between the providers of any service or facility whatsoever in terms of this Act or between such providers and any member of the public, the complaint shall be referred to the Authority by any party to the dispute within a period and in such manner as may be prescribed.

(2) If the Authority considers the complaint to be justified, it shall make a determination in the matter within such period, not exceeding three months, and in accordance with such procedure, including affording the parties concerned an opportunity to make representations on the matter, as may be prescribed.

(3) Notwithstanding subsection (2), the Authority may, without taking any further action in the matter, refer it for determination by the tribunal referred to in section 93E.

93E Complaints tribunal

(1) For the purpose of settling disputes referred to in section 93D, there is hereby established a tribunal to be known as the Complaints Tribunal.

(2) The tribunal shall consist of three members appointed by the Minister, one of whom shall be a person who holds or has held judicial office in Zimbabwe or has practised as a legal practitioner in Zimbabwe for at least ten years who shall be the chairperson, and the two other members shall be persons with expert knowledge in communication matters, one of whom shall be nominated by the Consumer Council of Zimbabwe.

(3) If at any time a member of the Complaints Tribunal is unable for any reason to act as such, the member shall be replaced in accordance with subsection (2).

(4) In addition to determining matters referred to it in terms of section 93D, the tribunal shall adjudicate any other communication matters which the Minister may refer to it.

(5) The procedure to be followed by the tribunal shall be as prescribed in regulations.

(6) Appeals from any determination of the tribunal shall lie to the Administrative Court.

93F Tenure of office of members of tribunal

(1) The term of office of members of the tribunal shall be a period of four years but a member shall be eligible for reappointment for one further term of office.

(2) The appointment of a member shall terminate if he or she would be required in terms of paragraph 2 or paragraph 4(2)(a) or (b) of the Second Schedule to vacate his or her office.

93G Appeals to Administrative Court

(1) Any person who is aggrieved by a decision of the Authority in the exercise of its functions in terms of this Act may appeal against such decision to the Administrative Court.

(2) An appeal in terms of this section shall be lodged with the Registrar of the Administrative Court within twenty-one days of the date of the decision appealed against.

(3) The Administrative Court Act [*Chapter 7:01*], shall apply in relation to the composition, procedure and powers of the Administrative Court on an appeal in terms of this section.

PART XIB

MISCELLANEOUS PROVISIONS

93H Emergency and universal service obligations of certain licensees

(1) A licensee shall—

(a) provide such facilities as will enable a person to communicate with an emergency organisation free of charge in the event of an emergency occurring within any area serviced by it; and

(b) endeavour to ensure that their communication apparatus is compatible with peripheral devices commonly used by disabled persons.

(2) Until an implementation plan covering the area and services concerned is put into effect, a telecommunication or postal licensee shall provide such services and community service telephones in such under-serviced areas and community centres within and outside such areas as the Authority, with the approval of the Minister, shall specify in the licence issued to the licensee.

(3) The Authority, with the approval of the Minister, may specify a tariff for the use of community service telephones in the under-serviced areas and community centres referred to in subsection (2).

93I Inspectors

(1) The Authority may appoint persons employed by it to be inspectors for the purposes of this Act and shall furnish each person so appointed with a certificate signed by or on behalf of the Director-General stating that he or she has been appointed as an inspector.

(2) An inspector or a police officer may require a person whom he or she has reasonable cause to suspect is a person required in terms of this Act to possess a licence, certificate or authority to produce his or her licence, certificate or authority, as the case may be.

(3) If a person referred to in subsection (2)—

(a) is unable to produce his or her licence, certificate or authority on demand; or

(b) cannot be located at his or her usual or last-known place of abode or business;

the inspector or police officer concerned may serve on the person a notice in the prescribed form requiring that person to produce that notice and his or her licence, certificate or authority to the police officer in charge of a police station within a period of seven days from the date of service of that notice.

(4) A police officer to whom a notice and a licence, certificate or authority have been produced in terms of subsection (3) shall forthwith—

(a) issue to the person who produced the notice and licence, certificate or authority a receipt in the prescribed form; and

(b) notify the inspector or police officer who served the notice that the notice and the licence, certificate or authority have been produced.

(5) If a person who has been served with a notice in terms of subsection (2)—

(a) fails to comply with the requirement contained in that notice, he or she shall be presumed, until the contrary is proved, not to be the holder of the licence, certificate or authority, as the case may be, referred to in the notice;

(b) is subsequently prosecuted for failing to comply with the requirement contained in that notice, he or she shall be presumed, unless the contrary is proved, not to have produced that notice and his or her licence, certificate or authority, as the case may be, in compliance with the notice.

(6) Subject to subsection (9), an inspector or a police officer may at all reasonable times enter premises—

(a) of a licensee; or

(b) in or on which a dealer or an authorised repairer carries on business; or

(c) which are owned or occupied by a person whom he or she has reasonable cause to suspect—

(i) is working a radio station or has a radio station in his or her possession or under his or her control in contravention of this Act; or

(ii) is working a radio transmitting station or apparatus for operating a diffusion service or has a radio transmitting station or apparatus for operating a diffusion service in his or her possession or under his or her control in contravention of the Broadcasting Services Act [*Chapter 12:06*];

(iii) is providing any service or operating any system for which a licence other than a listener's licence issued in terms of the Broadcasting Services Act [*Chapter 12:06*] is required; or

(d) on which he or she has reasonable cause to suspect is established, constructed or installed a radio station, radio apparatus or generating apparatus which is causing harmful interference; or

(e) which are owned or occupied by a person whom he or she has reasonable cause to suspect is in possession of a receiver as defined in the Broadcasting Services Act [*Chapter 12:06*]; or

(f) on which he or she has reasonable cause to suspect an offence against this Act has been committed;

and shall have power to make such examination, inspection and inquiry and do such things as may appear to him or her necessary for ascertaining whether compliance has been made with this Act.

(7) Subject to subsection (9), all books, records, accounts and documents required to be kept by a dealer or an authorised repairer in terms of this Act shall be open to inspection at all reasonable times by an inspector or by a police officer.

(8) Subject to subsection (9), an inspector may inspect at all reasonable times a radio station, radio or other apparatus or premises worked or used by or in the possession or under the control of a licensee, dealer or authorised repairer.

(9) The powers of entry and inspection conferred by this section shall not be exercised—

(a) in a case where the entry and inspection is for the purpose of ascertaining compliance with the requirement to hold a listener's licence issued in terms of the Broadcasting Services Act [*Chapter 12:06*] or with the terms of such a licence, except with the consent of the person in charge of the premises concerned or in accordance with a search warrant issued in terms of section 50 of the Criminal Procedure and Evidence Act [*Chapter 9:07*];

(b) in a case other than one referred to in paragraph (a), except with the consent of the person in charge of the premises concerned, unless there are reasonable grounds for believing that it is necessary to exercise them for the prevention, investigation or detection of an offence in terms of this Act or for the obtaining of evidence relating to such an offence.

(10) An inspector or police officer may, in the exercise of the powers conferred upon him or her by this section, seize—

(a) a radio station which he or she has reasonable cause to suspect is being worked by or is in the possession or under the control of a person in contravention of this Act; or

(b) a radio transmitting station or apparatus for operating a diffusion service or broadcasting service which he or she has reasonable cause to suspect is being worked by or is in the possession or under the control of a person in contravention of this Act or the Broadcasting Services Act [*Chapter 12:06*]; or

(c) a book, record or document which he or she has reasonable cause to suspect will afford evidence of the commission of an offence against this Act, or, as the case may be, the Broadcasting Services Act [*Chapter 12:06*] relating to the matters referred to in subparagraph (ii) of paragraph (c) of subsection (6);

and may retain it for so long as may be necessary for the purpose of any examination, investigation, trial or inquiry.

(11) An inspector may, in the exercise of the powers conferred upon him or her by this section, order a person referred to in subsection (8) to cease using, pending inquiry by the Authority, a radio station or radio or other apparatus which, in his or her opinion, is causing harmful interference or is being worked otherwise than in accordance with this Act, the Broadcasting Services Act [*Chapter 12:06*], or the International Telecommunication Constitution or, as the case may be, the terms and conditions of his or her licence.

(12) An inspector shall, on demand by any person affected by the exercise of the powers conferred upon him or her by this section, exhibit the certificate issued to him or her in terms of subsection (1).

93J Disclosure of confidential information by inspectors

(1) If an inspector or member or employee of the Authority in the course of his or her duties as such acquires information relating to the financial affairs of any person, or to any commercial secret, he or she shall not for personal gain make use of such information, nor disclose it to any other person except—

(a) for the purpose of legal proceedings under this Act or any other law; and

(b) to the extent that it may be necessary to do so for the purpose of this Act or any other law, to another inspector or member or employee of the Authority.

(2) Any person who contravenes provisions of this section shall be guilty of an offence and liable to a fine not exceeding level 10 or to imprisonment for a period not exceeding two years or to both such fine and such imprisonment.

93K Power to give directions

(1) For the purpose of ensuring—

(a) reliability of the provision of any service;

(b) technical compatibility and safety of operation of any equipment or telecommunication system;

(c) fair and efficient market conduct by licensees;

(d) co-ordination and co-operation, on such terms as the Authority may specify, with any other licensee in the use or sharing of any installation or system, or part thereof, owned or used by the licensee for the provision of any service;

the Authority may, without derogation from the liability of any licensee for any offences under this Act, before or concurrently with any legal proceedings against the licensee, give directions in writing to such licensee affording the licensee an opportunity to take such corrective action in respect of, or to desist from, any conduct which is in contravention of this Act or of the conditions of the licence of the licensee.

(2) A direction given under subsection (1) shall—

(a) require the licensee concerned, subject to the circumstances of the case, to do or to desist from doing, such things as are specified in the direction, or as are of a description specified in the direction; and

(b) take effect within such time as is practicable as specified in the direction.

(3) The Authority may at any time vary, suspend or revoke the whole or any part of a direction made in terms of this section.

(4) Before giving a direction to any licensee in terms of this section or varying any such direction, the Authority shall, unless it considers impracticable or undesirable, give notice—

(a) stating that the Authority proposes to make or vary the direction and setting out its effect; and

(b) specifying the period within which representations or objections to the proposed direction or variation may be made.

(5) The licensee concerned shall comply with a direction of the Authority given in terms this section.

93L Interception of communications

A licensee or employee of such licensee in charge of a communication office shall detain any communication—

(a) which he or she suspects of containing anything that will afford evidence of the commission of a criminal offence or which he or she suspects of being sent in order to further the concealment of the commission of a criminal offence; or

(b) which he or she is requested by a commissioned police officer to detain on the ground that that police officer suspects it of containing anything that will afford evidence of the commission of a criminal offence or that he or she suspects it of being sent in order to further the concealment of the commission of a criminal offence;

and, if so, authorised by the Prosecutor-General, that licensee or employee in charge shall cause the communication to be handed over to such person as may be specified by the Prosecutor-General:

Provided that where, in the opinion of that licensee or employee in charge, by reason of the possibility of injury to any person or property, urgency or other good cause, it is necessary that the communication be

delivered to a police officer as soon as is possible, the employee in charge shall cause the communication to be handed over to a police officer and shall forthwith inform the Prosecutor-General in writing thereof.".

24 Amendment of Part XI of Cap. 12:05

Part XII ("GENERAL") of the principal Act is repealed and the substitution of the following—

"PART XII

GENERAL

94 Regulations

(1) The Minister may, after consultation with the Authority, make regulations prescribing all matters which by this Act are required or permitted to be prescribed or which, in the opinion of the Minister, are necessary or convenient to be prescribed for carrying out or giving effect to this Act.

(2) Regulations made in terms of subsection (1) may provide for—

(a) all matters relating to the management of post offices and the provision or operation of communication services or systems;

(b) the supply, sale and use of postage stamps, and in so doing provide for—

(i) the classes of postal articles in respect of which postage stamps shall be used for the payment of postage or other sums payable under an approved postal tariff;

(ii) the conditions subject to which postage stamps, including perforated or defaced postage stamps, may be accepted or refused in payment of postage or any other sum;

(iii) the regulation of and the measures to be taken in connection with the supply, sale and custody of postage stamps;

(iv) the persons by whom, and the conditions subject to which, postage stamps may be sold;

(v) the duties and remuneration of persons authorised to sell postage stamps;

(vi) the conditions of sale of international reply coupons;

(c) the installation of letter boxes or receptacles by members of the public for the purpose of the delivery to them of postal articles and the disposal of postal articles addressed to members of the public who fail to install in the prescribed manner letter boxes or receptacles of a type prescribed;

(d) the registration of postal articles, and in so doing provide for—

(i) the classes of postal articles that may be registered;

(ii) the maximum amount for which a postal article may be registered;

(iii) the amount payable as compensation for the loss of a registered postal article or its contents;

(e) the insurance of postal articles, and in so doing provide for—

(i) the classes of postal articles that may be insured;

(ii) the maximum amount for which a postal article may be insured;

(iii) the amount payable as compensation for the loss of an insured postal article or its contents;

(f) a money order service and in so doing provide for—

(i) the maximum amount for which money orders may be issued;

(ii) the period during which money orders shall remain current;

(g) a postal order service, and in so doing provide for the manner in which and the conditions subject to which postal orders may be issued, paid and cancelled;

(h) the establishment, maintenance, working and conduct of telecommunication services or systems, and in so doing—

(i) provide in connection with a telegraph service for—

A. the order of precedence of messages sent by telegraph service and the method of disposal of unclaimed and undelivered telegrams;

B. the measures to be taken to prevent the improper interception or disclosure of messages sent by telegraph service;

C. the period for which and the conditions subject to which telegrams and documents relating to telegrams that are in the custody of telegraph offices shall be preserved;

(ii) provide in connection with telephone services for—

A. the conditions subject to which persons may use or avail themselves of telephone services and facilities connected therewith;

B. the supply, installation, maintenance and repair of such apparatus and equipment as may be necessary for the purposes of affording persons the use of telephone services and facilities connected therewith and, if the nature of the apparatus or equipment so requires, for the working of the apparatus or equipment by a licensee;

C. the conditions subject to which apparatus and equipment referred to in subparagraph B shall

be supplied, installed, worked, whether by a licensee or otherwise, maintained and repaired;

D. the deposits and charges to be paid in connection with the supply, installation, working by a licensee, maintenance and repair of apparatus and equipment referred to in subparagraph B and generally in connection with the use of telephone services and facilities connected therewith;

E. the forfeiture of deposits referred to in subparagraph D and the payment of sums to meet losses in income occasioned by the default of a person to whom apparatus or equipment referred to in subparagraph B is supplied or on whose behalf or request it is installed and to meet the costs of work done for the purpose of installation and like costs when apparatus or equipment supplied to or installed on behalf of or at the request of a person is removed before the expiration of a prescribed period or, as the case may be, is not supplied or installed owing to the default of the person;

F. the varying, exclusion or substitution, with the agreement of a person to whom a telephone service or facilities connected therewith are afforded or by whom such a service or facilities are used, of any provision prescribing a condition or relating to a matter referred to in subparagraphs A to E in respect of the supply to him or her or the installation, maintenance, working, repair or use of apparatus or equipment by him or her or on his or her behalf or at his or her request;

(i) the protection from interference or injury by works and lines for the supply of electricity of telecommunication systems established, maintained or worked by a licensee and by persons authorised in terms of this Act to establish, maintain or work telecommunication systems, and in so doing provide for the varying, exclusion or substitution, with the agreement of a person by whom such works or lines are established or operated, of any regulations providing for the protection of such telecommunication systems from interference or injury which may be applicable to the person;

(j) the giving of such access to buildings and the furnishing of such places, facilities and fittings in buildings by the owners of buildings as may be necessary for the purpose of installing, maintaining and repairing apparatus and equipment used or to be used in connection with telecommunication systems within the building;

(k) such matters as the Minister may consider appropriate or necessary to give force and effect, within Zimbabwe, to the provisions of the International Telecommunication Constitution and the Constitution of the Universal Postal Union;

(l) in relation to the provision of reserved services—

(i) the category of reserved services, including reserved agency services;

(ii) the rates of postage payable on reserved postal articles;

(iii) the redirection of reserved postal articles and the transmission by post of postal articles so redirected free of charge or subject to a prescribed charge;

(iv) the charges to be paid for registration of reserved postal articles;

(v) the charges to be paid for insurance of reserved postal articles;

(vi) the rates of commission or the charges to be charged on and in respect of reserved money orders;

(vii) the rates of commission to be charged on reserved postal orders;

(viii) the rates at which and the conditions and restrictions subject to which—

A. messages shall be transmitted by a reserved telegraph service;

B. messages transmitted by a reserved telegraph service shall be delivered;

(ix) the charges for searching for telegrams or documents relating to telegrams that are in the custody of telegraph officers employed by a reserved telegraph service;

(m) the classification of radio stations, other than broadcasting stations and radio stations used solely in connection with broadcasting and diffusion services, and in so doing amend the Third Schedule or vary the definition of a radio station specified in the Third Schedule and prescribe the nature of the radiocommunication services to be carried on therefrom;

(n) the inspection and testing by employees of broadcasting stations, licensed radio stations and radio stations and radio and other apparatus used in connection with broadcasting services or systems and for the method of installation, working and maintenance thereof;

(o) the establishment, maintenance, protection, working and conduct of all or any radiocommunication service established, maintained or carried on by a licensee, whether in conjunction with a telecommunications service or system or otherwise;

(p) the prohibition, restriction or control, by licence or otherwise, of the importation, purchase and sale of any apparatus capable of causing harmful interference;

(q) ensuring that—

(i) the use of generating apparatus or power lines does not cause harmful interference and in so doing prescribe the conditions to be observed with respect to—

A. the maximum intensity of electromagnetic energy of specified frequencies which may be radiated in any direction from generating apparatus or power lines when in use;

B. the electromagnetic energy of specified frequencies which may be injected by generating apparatus into the power lines by means of which power is supplied to the generating apparatus;

(ii) the use, in connection with a broadcasting or diffusion service or otherwise of radio stations or radio or other apparatus that does not injure or interfere with telecommunication services established, maintained or carried on by a licensee or injure or interfere with radio stations or radio or other apparatus, equipment, circuits, instruments, wires and the like of a licensee, and in so doing authorise the Authority to order the modification of radio stations or the removal or replacement of radio or other apparatus;

(r) the registration of dealers in and repairers of radio transmitting stations and the information to be supplied to the Authority in connection with applications for registration;

(s) the keeping of books, records and documents, the furnishing of returns and the supply of information relating to dealings in and the repair of radio transmitting stations by dealers and authorised repairers;

(t) the qualifications in respect of age, term of service, skill, character and otherwise required by applicants for certificates of competency to work prescribed classes and types of radio stations;

(u) the holding of examinations to determine the proficiency of applicants for certificates of competency to work prescribed classes and types of radio stations;

(v) the issue of certificates of competency referred to in paragraph (t) to persons with the qualifications prescribed in terms of that paragraph;

(w) the fees to be paid—

(i) by applicants in connection with examinations referred to in paragraph (t); and

(ii) on the issue of certificates of competency to work prescribed classes and types of radio stations;

(x) the form and manner in which applications for licences, certificates and authorities are to be made and the information to be supplied in connection therewith;

(y) the form of licences, certificates and authorities, the terms and conditions to be contained in licences, certificates and authorities and the periods for which licences, certificates and authorities shall remain in force;

(z) the terms and conditions subject to which licences, certificates and authorities shall be issued;

(aa) the cancellation, suspension and amendment of licences, certificates and authorities and the surrender or delivery to the Authority of licences, certificates and authorities for those purposes;

(bb) the circumstances in which and the conditions, including the payment of a fee, subject to which copies of licences, certificates and authorities may be obtained;

(cc) the notification to the Authority by persons to whom licences, certificates and authorities are issued of changes in their places of residence or business;

(dd) the notification to the Authority of changes in the places, aircraft, ships or vehicles at or in which radio stations in respect of which licences are issued, are established, installed or worked;

(ee) the proper exercise by the Authority of the powers of control of and supervision over radiocommunication services conferred upon it by this Act and of the other powers, functions and duties conferred or imposed upon it by this Act;

(ff) the procedures to be followed for the settlement of disputes in terms of this Act;

(gg) access to communications services by the elderly and people with disabilities;

(hh) the prevention or minimisation of harmful emissions from communications systems;

(ii) the disposal of used communications equipment;

(jj) performance standards for the public operators;

(kk) accounting and charging requirements for public operators;

(ll) the registration and administration of domain names and licensing of internet service providers and the regulation of the installation and operation of internet and other information communication technologies;

(mm) the registration of SIM cards and subscriber information;

(nn) consumer protection and competition in the communications sector;

(oo) the provision of emergency communications services; and

(pp) the management and monitoring of telecommunication traffic.

(3) Subject to subsection (4), before making regulations in terms of subsection (2)(l), the Minister shall consult the Minister responsible for finance:

Provided that the Minister shall not be required to consult the Minister responsible for finance in the case of any regulations the effect of which is solely—

(a) to alter any prices, rates or charges in order to conform with changes made by countries outside Zimbabwe; or

(b) to fix charges and costs in connection with the supply, installation, working, maintenance or repair or any work done for the purposes of the installation of apparatus or equipment supplied, installed, worked, maintained or repaired by a designated licensee.

(4) Where a designated licensee proposes to increase any tariff for the provision of any reserved agency, postal or telecommunication service, and the Minister gives no written indication to the designated licensee of his or her intention to implement a specified alternative to the proposed increase within thirty days after the designated licensee first notified him or her in writing of the proposal, such increase shall be deemed to have been approved and shall take effect not earlier than the date on which the designated licensee publishes a notice of the increase in the *Gazette*:

Provided that the approval of the Minister shall not be required in the case of any tariff the effect of which is solely to alter the rates of postage in order to conform with changes to postal rates made by countries outside Zimbabwe.

(5) Regulations made in terms of subsection (1) may provide for the imposition of penalties not exceeding level fourteen or, in default of payment, imprisonment for a period not exceeding six months for contraventions of the regulations.

(6) Nothing in this section shall be construed as conferring any right on a person to be supplied with or to be afforded the use of any telecommunication services or facilities connected therewith or apparatus or equipment necessary for that purpose.

95 Administrative fines

(1) The Authority may, with the approval of the Minister, after consultation with the Minister responsible for finance, by notice in the *Gazette*, provide for such administrative fees and charges in respect of any of its services provided in terms of this Act.

(2) Without limiting the generality of subsection (1), administrative fees and charges may be imposed in connection with—

(a) the registration, monitoring and surveillance of telecommunication installations, apparatus and systems;

(b) the surveillance and inspection of licensees and persons engaged in markets for telecommunication services;

(c) the management, assignment and revocation of addressing resources;

(d) decisions concerning access, interconnection, interoperability and leased lines;

(e) the amendment of licences;

(f) the management and technical monitoring of the frequency spectrum;

(g) the examination or testing of such applicants, the fees payable in respect of such examination or testing and the circumstances in and conditions on which an applicant may be exempted from such examination or testing for the provision of any services in terms of this Act.

(h) the resolution of disputes.

(3) The Authority may impose a surcharge not exceeding twice the amount of the charge fixed for the relevant service if any such charge is not paid within the specified time.

(4) Any fee or charge due in terms of this section shall be a debt due to the Authority and may be recovered by proceedings in any court of competent.

(5) If responsibility for any of the services of the Authority have been delegated to any person in terms of this Act, such services shall be provided by such person in accordance with the charges notified in terms of subsection (1).

96 Proceedings on failure of Authority to comply with Act or direction

(1) If at any time it appears to the Minister that the Authority has failed to comply with this Act or with a direction given to it in terms of section 25 or 26, he or she may, by notice in writing, require the Board to make good the default within a specified period.

(2) If an act or thing required to be done in terms of this Act is omitted to be done or is not done in the manner or within the time so required, the Minister may order all such steps to be taken as in his or her opinion are necessary or desirable to rectify such act or thing, and the said act or thing when done in terms of the said order shall be of the same force and validity as if originally done in accordance with the appropriate provisions of this Act.

(3) Any expenses incurred by the Minister in the exercise of his or her powers in terms of subsection (2) shall be defrayed from the funds of the Authority.".

25 Repeal of Part XIII of Cap. 12:05

Part XIII ("Transitional Provisions, Amendments, Repeals and Savings") of the principal Act is repealed.

26 Amendment of First Schedule to Cap. 12:05

The First Schedule ("Classification of Radio Stations") of the Principal Act is amended by the repeal of the First Schedule and the substitution of the following—

"FIRST SCHEDULE (Section 4(2))

ANCILLARY POWERS OF AUTHORITY

1. To acquire by lease, purchase, or otherwise, immovable property and to construct buildings thereon.

2. To buy, take in exchange, hire or otherwise acquire movable property, including vehicles, necessary or convenient for the performance of its functions.

3. To maintain, alter and improve property acquired by it.

4. To mortgage or pledge any assets or part of any assets and, with the approval of the Minister, to sell, exchange, let, dispose of, turn to account or otherwise deal with any assets or part of any assets which are not required for the exercise of its functions for such consideration as the Authority may, with the approval of the Minister, determine.

5. To open bank and building society and post office accounts in the name of the Authority and to draw, make, accept, endorse, discount, execute and issue for the purposes of its functions, cheques, promissory notes, bills of exchange, bills of lading, securities and other instruments.

6. To insure against losses, damages, risks and liabilities which it may incur.

7. To enter into contracts and suretyships or give guarantees in connection with the exercise of its functions and to modify or rescind such contracts or rescind suretyships or guarantees.

8. With the approval of the Minister, to enter into, renew, cancel or abandon arrangements with any government or authority, local or otherwise, that may seem conducive to the exercise of its functions or any of them and to obtain from such government or authority rights, privileges and concessions which the Authority thinks desirable to obtain and carry out, exercise and comply with such arrangements, rights, privileges and concessions.

9. With the approval of the Minister, to raise loans or borrow money in such amounts and for such purposes and under such conditions as may be approved by the Minister.

10. To employ, upon such terms and conditions as the Authority may think fit, such persons as may be necessary for conducting its affairs and suspend or discharge any such persons.

11. Subject to the Public Finance Management Act [*Chapter 22:19*] to pay such remuneration and allowances and grant such leave of absence and to make such gifts and pay bonuses and the like to its employees as the Authority thinks fit.

12. To provide pecuniary benefits for its employees on their retirement, resignation, discharge or other termination of service or in the event of their sickness or injury and for their dependants, and for that purpose to effect policies of insurance, establish pension or provident funds or make such other provision as may be necessary to secure for its employees and their dependants any or all of the pecuniary benefits to which this paragraph relates.

13. With the approval of the Minister, to purchase, take in exchange, hire and otherwise acquire land or dwellings for use or occupation by its employees.

14. To construct dwellings, outbuildings or improvements for use or occupation by its employees on land purchased, taken in exchange, hired or otherwise acquired by the Authority.

15. To sell or let dwellings and land for residential purposes to its employees.

16. With the approval of the Minister, to guarantee loans to its employees for the purchase of dwellings or land for residential purposes, the construction of dwellings and the improvement of dwellings or land which are the property of its employees.

17. To provide security in respect of loans guaranteed in terms of paragraph 16 by the deposit of securities.

18. With the approval of the Minister, to make loans to any employee of the Authority—

    (a) for the purpose of purchasing vehicles, tools or other equipment used by him or her in carrying out his or her duties; or

    (b) not exceeding three months' salary or wages payable to him or her, for any purpose;

    on such security as the Authority considers adequate.

19. To do anything for the purpose of improving the skill, knowledge or usefulness of its employees, and in that connection to provide or assist other persons in providing facilities for training, education and research and to pay for the aforesaid, where necessary.

20. To provide such services as the Authority considers could properly be provided by the Authority.

21. With the approval of the Minister, to provide financial assistance to any person, association, organisation or institution whose activities are such as to be, in the opinion of the Authority, of benefit to the Authority.

22. Generally, to do all such things as may be necessary, conducive or incidental to the exercise of the powers and the performance of the functions of the Authority under this Act or any other enactment."

27 Amendment of Second Schedule to Cap. 12:05

The Second Schedule ("Ancillary Powers of Authority") of the Principal Act is amended by the repeal of the Second Schedule and the substitution of the following—

"SECOND SCHEDULE (*Section 6*(6))

PROVISIONS APPLICABLE TO BOARD

Paragraph

1. Interpretation in Second Schedule.
2. Term of office and conditions of service of members of Board.
3. Disqualification for appointment to Board.
4. Vacation of office by members of Board.
5. Filling of vacancies of Board.
6. Meetings and procedure of Board.

7. Committees of Board.

8. Remuneration and allowances of Board and committees.

9. Validity of decisions and acts of Board.

Interpretation in Second Schedule

1. In this *Schedule*—

"appointed member", in relation to the Board, means a member appointed under section 7;

"chairperson" means the chairperson of the Board referred to in section 7(1).

Term of office and conditions of service of members of Board

2. (1) Each member, with the exception of the *ex officio* member, shall hold and vacate office in accordance with the terms and conditions of his or her appointment.

(2) A member of the board shall be appointed for a term for a period not exceeding four years and shall be eligible for re-appointment for only one such further term.

(3) No member shall be appointed or re-appointed to the board if he or she has already served on the board for periods, whether consecutively or not, amounting to an aggregate of eight years.

(3) The conditions of service of an appointed member of the board, including allowances, shall be fixed by the Minister in consultation with the Minister responsible for finance, at the time of his or her appointment.

(4) Notwithstanding any other provision of this paragraph, the allowances payable to an appointed member of the Board shall not be reduced during his or her tenure of office.

Disqualification for appointment to Board

3. (1) A person shall not be qualified for appointment as a member of the Board, nor shall he or she hold office as an appointed member, if—

(a) he or she is not a citizen of Zimbabwe or ordinarily resident in Zimbabwe; or

(b) he or she is a member of two or more other statutory bodies; or

(c) he or she is a member of Parliament; or

(d) he or she is a member of a local authority or is in the full-time employment of a local authority; or

(e) in terms of the law in force in any country—

(i) he or she has been adjudged or otherwise declared insolvent or bankrupt and has not been rehabilitated or discharged; or

(ii) he or she has made an assignment to or composition with his or her creditors which has not been rescinded or set aside; or

(f) within the period of 5 years immediately preceding his or her proposed appointment, he or she has been sentenced in a country to a term of imprisonment imposed with or without the option of a fine, whether or not any portion thereof has been suspended, and has not received a free pardon;

(g) being a holder of a professional qualification who has been suspended or barred from practising the profession within or outside Zimbabwe.

(2) For the purposes of subparagraph (1)(b)—

(a) "statutory body" means—

(i) any Commission established by the Constitution Act 1 of 2013; or

(ii) any corporate body established directly by or under an Act for special purposes specified in that Act, the membership of which consists wholly or mainly of persons appointed by the President, a Vice-President, a Minister or any other statutory body or by a Commission established by the Constitution Act 1 of 2013;

(b) a person who is appointed to a council, board or authority which is a statutory body or which is responsible for the administration of the affairs of a statutory body shall be regarded as a member of that statutory body.

Vacation of office by members of Board

4. (1) A member shall vacate his or her office—

(a) upon the member's death; or

(b) if the member becomes disqualified, in terms of paragraphs 2 and 3, to hold office as a member; or

(c) if the member's appointment is terminated in terms of subparagraph (4); or

(d) upon giving three months written notice to the Minister of his or her intention to resign from the board.

(2) As soon as possible after a vacancy occurs in the membership of the board, the chairperson shall notify the Minister, in writing, not later than two weeks of the vacancy occurring.

(3) If a member ceases to hold office for any reason, the Minister may, within ninety days of receiving the notice under subparagraph (2), appoint another person to take place of the member, and the person so appointed shall hold office for the remainder of the term of office of the member in whose place he or she was appointed and shall be eligible for re-appointment.

(4) The Minister may terminate the appointment of a member if the member—

(a) conducts himself or herself in a manner that is detrimental to the efficient and proper performance of the functions of the Authority; or

(b) has been found to be physically or mentally incapable of performing his or her duties efficiently, and the member's medical doctor has issued a certificate to that effect; or

(c) is absent from three consecutive meetings or attends less than half of the meetings of the board without just cause.

Filling of vacancies of Board

5. On the death of, or vacation of office by, an appointed member of the Board, the Minister shall fill the vacancy within three months of the occurrence of the vacancy.

Meetings and procedure of Board

6. (1) The board shall regulate its own procedure for meetings.

(2) The Board shall meet at least once every quarter.

(3) A meeting of the board shall be called by the chairperson, giving at least fourteen days' notice of such meeting, unless all members consent to a shorter notice period.

(4) The chairperson—

(a) may convene a special meeting of the Board at any time; and

(b) shall convene a special meeting of the Board on the written request of not fewer than two members, which meeting shall be convened for a date not sooner than seven days and not later than thirty days after the chairperson's receipt of the request.

(5) Written notice of a special meeting convened in terms of subparagraph (4) shall be sent to each member not later than forty-eight hours before the meeting and shall specify the business for which the meeting has been convened:

Provided that a failure by a member to receive such a notice, or an inadvertent failure to send notice to a member, shall not invalidate the meeting.

(6) In the absence of the chairperson the deputy chairperson shall preside over the meeting of the Board as chairperson.

(7) In the absence of the chairperson or deputy chairperson, the members present shall, if they constitute a quorum, elect one of their numbers to preside over the meeting of the Board as chairperson.

(8) At any meeting of the Board, five of the members of the Board shall form a quorum.

(9) The Board will undertake to make decisions by consensus among the members present at the meeting of the Board at which a quorum is present, failing which anything authorised or required to be done by the Board shall be decided by a majority vote of the members at that meeting.

(10) At all meetings of the Board each member present shall have one vote on each question before the Board:

Provided that, in the event of an equality of votes, the chairperson or person presiding at the meeting shall have a casting vote in addition to his or her deliberative vote.

(11) With the approval of the Board the chairperson may invite any person to attend a meeting of the Board where the chairperson considers that the person has special knowledge or experience in any matter to be considered at the meeting.

(12) A person invited to attend a meeting of the Board under subparagraph (10) may take part in the meeting as if he or she were a member of the Board, but shall not have a vote on any question before the meeting.

(13) Any proposal circulated among all members of the Board and agreed to in writing by a majority of them shall have the same effect as a resolution passed at a duly constituted meeting of the members and shall be incorporated into the minutes of the next meeting of the Board:

Provided that, if a member requires that such a proposal be placed before a meeting of the Board, this subparagraph shall not apply to the proposal.

Committees of Board

7. (1) For the better exercise of its functions, the Board may establish one or more committees in which it may vest such of its functions as it considers appropriate:
Provided that the vesting of a function in a committee shall not prevent the Board from itself exercising that function, and the Board may amend or rescind any decision of the committee in the exercise of that function.

(2) On the establishment of a committee under subparagraph (1) the Board—

(a) shall appoint at least one of its members as a member of the committee, and that member or one of those members designated by the Board, as the case may be, shall be chairperson of the committee; and

(b) may appoint as members of the committee persons who are not members of the Board and fix the terms and conditions of their appointment.

(3) The chairperson of a committee, may at any reasonable time and place convene a meeting of that committee:

Provided that the chairperson of the Board may cause the convening of a committee meeting where the chairperson of a committee is not in a position to chair the meeting.

(4) Subject to this paragraph, the procedure to be followed at any meeting of a committee shall be fixed by the Board.

Remuneration and allowances of members of Board and committees

8. Members of the Board and of any of the committees shall be paid from the funds of the Authority—

(a) such remuneration as may be prescribed in terms of the Public Entities and Corporate Governance Act [*Chapter 10:33*];

(b) such allowances as the Minister responsible for corporate governance, after consultation with the Minister responsible for finance and the Minister, may fix to meet any reasonable expenses incurred by him or her in connection with the business of the Board.

Validity of decisions and acts of Board

9. (1) No decision or act of the Board or act done under the authority of the Board shall be invalid solely because there were one or more vacancies on the Board when the decision was taken or the act was done or authorised or a disqualified person partook in the act or decision.

(2) If any decision or other act of the Board is rendered invalid through a procedural irregularity, the Board may at a duly convened meeting ratify the decision or act, and any decision or act so ratified shall be valid in all respects with effect from the date of its ratification.".

28 Amendment of Third Schedule to Cap. 12:05

The Third Schedule ("Rights, Powers and Duties of Telecommunication Licensees Operating Telecommunication Systems") of the Principal Act is repealed and the substitution of the following—

"THIRD SCHEDULE (*Sections 33 and 94(2)(m)*)

CLASSIFICATION OF RADIO STATIONS

In this Schedule, "radio station" does not include a broadcasting station or a radio receiving station used solely in connection with a broadcasting or diffusion service.

Aeronautical station	means a radio station used for the purpose of carrying on a radiocommunication service with and for the benefit of aircraft.
Aircraft station	means a radio station continuously subject to human control which is installed in an aircraft.
Amateur station	means a radio station worked by a person interested in the technique of radiocommunications solely with a personal aim and without pecuniary interest.
Base station	means a radio station established on land and used for the purpose of carrying on a radiocommunication service with mobile stations.
Coast station	means a radio station established on land and used for the purpose of carrying on a radiocommunication service with and for the benefit of ship stations.
Community repeater mobile radio communication station	means a radio station of special type with a base station in which the antenna system is strategically located on a high building, tower or some other elevation to receive a signal from a fixed, mobile or portable station for retransmission to other fixed, mobile or portable stations.
Fixed station	means a radio station used for the purpose of carrying on a radiocommunication service between specified points.
Meteorological aids station	means a radio station used for the purpose of transmitting special signals intended solely for meteorological and hydrological observations and exploration.
Mobile station	means a radio station capable of use whilst in motion or during halts at unspecified points and includes those radio stations commonly known as "walkie-talkies", but does not include an aircraft station or ship station.
Model control station	means a radio station used for the purpose of controlling models.
Press station	means a radio receiving station used for the purpose of receiving news broadcasts from recognized press agencies.
Private experimental station	means a radio station utilizing Hertzian waves in experiments with a view to the development of the science and technique of radiocommunications, but does not include an amateur station.
Radio beacon station	means a radio station the emissions of which— (a) are intended to enable a mobile station, aircraft station or ship station to determine its bearings or direction in relation to the radio beacon station; or (b) provide information solely as to the position or identity of the radio beacon station.
Radio control station	means a radio station used for the purpose of controlling mechanism or other apparatus which is not installed in a model.
Radio location station	means a radio station used for the purposes of— (a) determining the relative direction, position or motion of an object; or (b) the detection of an object; by means of the constant velocity or rectilinear propagation characteristics of Hertzian waves.
Ship station	means a radio station installed in a vessel which is not permanently moored.
Special service station	means a radio receiving station used exclusively for the purposes of receiving time signals, notices to navigators, epidemiological and medical advice and like services of general utility.
Standard frequency station	means a radio transmitting station used for the purpose of transmitting standard and specified frequencies of known high accuracy intended for general reception.".

29 Insertion of Schedule to Cap. 12:05

The principal Act is amended by the insertion of a Schedule after Third Schedule—

"FOURTH SCHEDULE (*Section 63*)

RIGHTS, POWERS AND DUTIES OF TELECOMMUNICATION LICENSEES OPERATING TELECOMMUNICATION SYSTEMS

Paragraphs

1. Interpretation.
2. Compulsory acquisition of rights in or interests over land for telecommunication purposes.
3. Use of buildings and structures to support telecommunication lines, etc.
4. Entry upon land for telecommunication purposes.
5. Removal of telecommunication lines.
6. Erection of gates for access to telecommunication lines.
7. Trees obstructing telecommunication lines.
8. Laying of telecommunication lines under streets, etc.
9. Powers to be exercised with care and compensation for damage.
10. Height and depth of telecommunications lines.
11. Acquisition of right or interest in Communal land.
12. Licensee to authorise persons for purposes of Fourth Schedule.

Interpretation

1. In this Schedule—

"licensee" means a telecommunication licensee referred to in subsection (1) of section *fifty-eight*.

Compulsory acquisition of rights in or interests over land for telecommunication purposes

2. (1) Subject to subparagraph (3), a licensee may, with the approval of the Authority and the Minister responsible for lands and subject to such conditions as that Minister may impose, compulsorily acquire any servitude or other interest in or right over land required—

(a) for the purposes of constructing or maintaining a telecommunication line and the buildings and exchanges and other apparatus connected therewith; and

(b) for an access road to a site referred to in paragraph (a) or for the construction and use of such road; and

(c) for the erection of power lines and for the maintenance and inspection of such lines.

(2) The Authority and the Minister responsible for lands shall not grant approval in terms of subparagraph (1) except after consideration of the following reports, namely

(a) a report by the licensee concerned that—

(i) the licensee is unable to acquire the servitude, interest or right upon reasonable terms by agreement with the owner; and

(ii) it is necessary that the servitude, interest or right be acquired by the licensee for a purpose referred to in subparagraph (1); and

(b) a report by the Ministry responsible for the environment made on behalf of the licensee by a person qualified to make such reports assessing the anticipated impact on the environment of any works to be undertaken for a purpose referred to in subparagraph (1), and recommending any measures to be taken to assess, prevent or minimize such impact.

(3) Parts III, V and VIII of the Land Acquisition Act [*Chapter 20:10*] shall apply, *mutatis mutandis*, to the exercise by a licensee of his or her powers in terms of subsection (1).

Use of buildings and structures to support telecommunication lines, etc.

3. (1) Subject to this paragraph, a licensee may, on one month's written notice to the owner or occupier of the building or structure concerned, attach wires, stays or any other kind of support to any building or other structure for the purpose of facilitating or constructing a telecommunication line.

(2) If the owner or occupier of any land objects to the exercise of the powers referred to in subparagraph (1), he or she may lodge written notice of his or her objection and his or her reasons therefor with the licensee concerned and, on receipt of such objection, the licensee shall refer the matter to the Authority, whose decision shall be final:

Provided that an objection shall be lodged within one month of receipt of the notice given in terms of subparagraph (1).

(3) Before making any decision or order in terms of subparagraph (2), the Authority shall give to all parties concerned a reasonable opportunity of making representations, either in person or in writing.

(4) Before carrying out any work under, over or along any land reserved for railway purposes, other than maintenance and repair work, a licensee shall give notice in writing to the National Railways of Zimbabwe of the work he or she intends to carry out.

Entry upon land for telecommunication purposes

4. When, in accordance with this Schedule, a licensee has been permitted to occupy or use any land or has placed a telecommunication line in position, he or she shall be entitled to reasonable access to such land or line for the purpose of carrying on his or her operations on the land or of maintaining, removing, repairing or replacing the telecommunication line.

Removal of telecommunication lines

5. (1) If it is necessary to alter or remove a telecommunication line owing to any work or operations on the part of the State or a local authority or other person, the cost of the alteration or removal shall be borne by the State or the local authority or other person concerned.

(2) If a building is about to be erected on any land and any telecommunication line passing under or over the land will interfere with building operations, the licensee

concerned shall, within one month of being required in writing to do so, undertake such alteration or deviation of the telecommunication line as may be necessary to remove the interference.

(3) If a licensee is satisfied that any alteration or deviation of a telecommunication line that is desired for any reason, other than that mentioned in subparagraph (2), is possible, necessary or expedient, the licensee shall, within one month of being required in writing to do so, undertake the alteration or deviation, and the cost of carrying out any such alteration or deviation shall be borne by the person at whose request it is made.

(4) If by reason of—

(a) any excavation, blasting, mining or quarrying operations; or

(b) deposits of mining debris or the making of drains, railways or other cuttings or any other operations; or

(c) fumes or effluent from any factory, power station or other such premises; or

(d) the construction of any dam;

any telecommunication line is damaged or, in the opinion of the licensee who erected it, the safety or stability of any telecommunication line is endangered or likely to be adversely affected, the licensee may repair, deviate or alter the telecommunication line and the cost of such repair, deviation or alteration shall be borne by the person by whom or on whose behalf the operations referred to in paragraph (a) or (b) were conducted, the premises referred to in paragraph (c) were operated or the dam was constructed, as the case may be:

Provided that, where the alterations or deviations which are necessary or expedient are, in the opinion of the licensee, extensive, the licensee may charge the person concerned such proportion of the cost of the alteration or deviation as the licensee, with the consent of the Authority, considers fair or reasonable.

Erection of gates for access to telecommunication lines

6. (1) If a fence on any land, including State land, makes it impossible or inconvenient for a licensee to gain access to his or her telecommunication line, the licensee may, at his or her own expense, erect and maintain a gate in that fence.

(2) A licensee who has erected a gate in terms of subparagraph (1) shall provide a lock for the gate and supply a key for the lock to the owner or occupier of the land on which the gate is erected.

(3) Any person intending to erect a fence that would render it impossible or inconvenient for a licensee to obtain access to his or her telecommunication line shall give the licensee one month's notice in writing of his or her intention to erect the fence.

Trees obstructing telecommunication lines

7. (1) Trees or undergrowth which, in the opinion of a licensee, obstruct or interfere with or are likely to interfere with the working or maintenance of any telecommunication line shall, on 14 days' notice by the licensee and to such extent as the licensee may consider necessary, be cut down or trimmed—

(a) by the authority responsible for the care and management of the land, road or street concerned, where the trees or undergrowth are growing on

State land, other than State land which has been leased, or on Communal Land or on a road or street;

(b) by the owner or occupier of the land, concerned, in any other case.

(2) If the authority, owner or occupier referred to in subparagraph (1) objects to the exercise of the powers referred to in that subparagraph, he or she may lodge written notice of his or her objection and his or her reasons therefor with the licensee concerned and, on receipt of such objection, the licensee shall refer the matter to the Authority, whose decision shall be final:

Provided that an objection shall be lodged within 14 days of receipt of the notice given in terms of subparagraph (1)

(3) Before making any decision or order in terms of subparagraph (2), the Authority shall give to all parties concerned a reasonable opportunity of making representations, either in person or in writing.

(4) The Authority shall uphold an objection made in terms of subparagraph (2) if it is shown to its satisfaction that the obstruction to or interference or likely interference with the telecommunication line in question can be avoided without cutting down or trimming any trees or undergrowth and without unreasonable extra cost to the licensee.

(5) The reasonable expenses incurred in cutting down or trimming trees or undergrowth in terms of subparagraph (1) shall be borne by the licensee concerned.

(6) Subject to this paragraph, if the authority, owner or occupier referred to in subsection (1) fails to comply with a notice given by the licensee in terms of that subparagraph, the licensee may enter upon the land, road or street, as the case may be, in question and cut down or trim the trees or undergrowth to the extent he or she considers necessary.

(7) Notwithstanding subparagraph (1), if the working of any telecommunication line is actually interfered with or endangered by any trees or undergrowth, the licensee concerned may remove the interference or danger without giving the notice required by subparagraph (1).

Laying of telecommunication lines under streets, etc.

8. (1) A licensee may construct and maintain a telecommunication line under any street, road or footpath, and may alter or remove any such telecommunication line:

Provided that before doing so the licensee shall give reasonable notice to the authority or person that owns or has the care and management of the street, road or footpath concerned

(2) In the exercise of the powers conferred by subparagraph (1), the licensee may break or open up any street, road or footpath and alter the position thereunder of any pipe, other than a main sewer, main drain or gas main, and of any electric cable other than an electric main:

Provided that no alteration in the position of any such pipe or cable shall be made except under the supervision of a person appointed by the person to whom the pipe or cable belongs or by whom it is used, unless no such person is appointed or the person so appointed fails to supervise at the time specified in the notice for the commencement of the work or discontinues supervision during the work.

Powers to be exercised with care and compensation for damage

9. (1) In the exercise of the powers conferred by this Schedule, a licensee shall—

(a) cause as little detriment and inconvenience and do as little damage as possible; and

(b) pay compensation to any person who suffers loss or deprivation of rights through the exercise of the powers conferred by this Schedule; and

(c) if so, requested by the Authority, commission a report referred to in paragraph (b) of subparagraph (2) of paragraph 2 before exercising any powers conferred by paragraphs 3 to 8.

(2) Parts V and VIII of the Land Acquisition Act [*Chapter 20:10*] shall apply, *mutatis mutandis*, to the payment of compensation in terms of subparagraph (1):

Provided that any reference in Part VIII of that Act to the date of the publication of a preliminary notice in the *Gazette* shall be construed as a reference to the date of the exercise by the licensee concerned of the powers referred to in subparagraph (1).

(3) On completion of any work in connection with the construction, maintenance or repair of a telecommunication line in the exercise of the powers conferred by this Schedule, the licensee concerned shall promptly restore the surface of any street, road, footpath, land or railway affected thereby as nearly as reasonably possible to the same condition as that in which it was before the work was commenced.

(4) While any street, road or footpath is opened, broken up or otherwise obstructed by the exercise of the powers conferred by this Schedule, the licensee concerned shall cause the obstruction to be fenced or guarded and, during the night, lighted.

Height and depth of telecommunications lines

10. (1) Aerial telecommunication wires and cables shall be carried over land at such height from the surface of the ground as may be prescribed.

(2) An underground telecommunication line that is not carried in a pipe or duct shall be placed such distance below the surface of the ground as may be prescribed.

(3) If the owner or occupier of any land is obstructed in the use of the land because a telecommunication line is insufficiently high, the licensee concerned shall, subject to paragraphs 5 and 7, take such steps as may be necessary for the removal of the obstruction.

Acquisition of right or interest in Communal Land

11. Notwithstanding anything to the contrary in this Schedule, no right over or interest in Communal Land shall be acquired, whether compulsorily or by agreement, otherwise than in accordance with the Communal Land Act [*Chapter 20:04*].

Licensee to authorise persons for purposes of Fourth Schedule

12. The licensee shall furnish every person authorised by him or her to exercise any of the powers conferred by this Schedule with a certificate signed by or on behalf of the licensee stating that the person has been so authorised, and such person shall produce such certificate at the request of any person affected by the exercise of the said powers.".